

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 14-10

ECONOCARIBE CONSOLIDATORS, INC.

COMPLAINANT

v.

AMOY INTERNATIONAL, LLC.

RESPONDENT

COMPLAINANT'S MOTION FOR PARTIAL SUMMARY JUDGMENT

Pursuant to 46 C.F.R. § 502.70, Complainant, Econocaribe Consolidators, Inc. ("Econocaribe"), by and through the undersigned counsel, hereby files its Motion for Partial Summary Judgment as to Respondent's violation of 46 U.S.C. § 41104(2)(A), 46 U.S.C. § 41102(c), 46 C.F.R. § 515.31(e), Sections 10(a)(1), 10(b)(1) and 10 b(2)(A) of the Shipping Act of 1984, as amended. In support thereof, Complainant states as follows:

MEMORANDUM OF LAW IN SUPPORT OF COMPLAINANT'S MOTION

INTRODUCTION

The materially relevant facts of this case are clear and undisputed. Amoy contracted with Econocaribe for the shipment of 4 containers allegedly containing 100 packages of "Auto Parts (New)" from Oakland, CA to Xingang, China. Econocaribe in turn contracted with Maersk Line

("Maersk") for the shipment. Upon the cargo's arrival in Xingang, China, Chinese Customs opened the containers for inspection and found that the contents were in fact baled used truck tires which were prohibited from entering China. Chinese Customs seized the four containers. Chinese Customs finally released the used truck tires, with the condition that they be exported back to the U.S. These used truck tires have been loaded on the return ship and are expected to arrive in the U.S. on or about January 10, 2015. Upon arrival in the U.S., they will be destroyed according to environmental regulations. Econocaribe has paid Maersk a mitigated amount of demurrage charges and will incur costs related to the return and destruction of these used truck tires.

STATEMENT OF UNDISPUTED FACTS

There are no disputes related to Amoy's violation of 46 U.S.C. § 41104(2)(A), 46 U.S.C. § 41102(c), 46 C.F.R. § 515.31(e), Sections 10(a)(1), 10(b)(1) and 10 b(2)(A) of the Shipping Act of 1984, as amended, therefore Complainant is entitled to summary judgment as a matter of law as to Respondent's violation of these provisions. The undisputed material facts are set forth as the follows:

1. Econocaribe is a licensed ocean freight forwarder and non-vessel operating common carrier ("NVOCC"), with its principal place of business at 2401 NW 69 Street, Miami, FL 33147. It maintains a branch office at 637 E. Albertoni St., Suite 104, Carson, CA 90746, United States.
2. Amoy does business as an Ocean Transportation Intermediary under Federal Maritime Commission license number 019113N, bond number 8941895, with its place of business at 14145 Proctor Avenue Suite 14, City of Industry, CA 91746, United States.

3. On May 20, 2013 Amoy contracted with Econocaribe for the shipment of 4 containers allegedly containing 100 packages of "Auto Parts (New)" from Oakland, CA to Xingang, China. *See* Exhibit "A", Amoy Booking Request & Econocaribe Booking Confirmation.
4. Krystal Lee, Amoy's employee, made the booking with Econocaribe and described the cargo as "auto parts (new)." *See* Exhibit "A".
5. However, the cargo was baled used truck tires. *See* Exhibit "B." Econocaribe did not know this until the cargo arrived in China and was inspected by Chinese Customs. *See* John Kamada Affidavit.
6. Krystal Lee knew that the cargo was in fact baled used truck tires when she booked spaces with Econocaribe and made the misdeclaration. *See* John Kamada Affidavit; Exhibit "C", Melissa Chen email dated April 15, 2014 in which she stated that "Krystal [Lee] is no longer with the company ... but Krystal has caused big problems with other shipments too and we have lost way too much money in past 2 years, law suits, penalties and etc.;" and Exhibit "D," Melissa Chen email dated May 9, 2014 in which she stated that that she "just took care of lawsuits with MSC and Zim due to previous losses with similar problem caused by the same sales [Krystal Lee]."
7. Amoy knew or should have known that the description was incorrect. *See* ¶ 9 of Complaint and ¶ 9 of Respondent's Answer to the Complaint¹.
8. Econocaribe's Terms and Conditions were included into the Bill of Lading. The Bill of Lading states "transportation pursuant to this Bill of Lading is subject to conditions set forth in Econocaribe published tariff." Exhibit "E".

¹ Although Amoy denies that it "willfully, intentionally and knowingly misdeclared the cargo as new auto parts," it nevertheless admits that its declaration was in fact a mistake.

9. Paragraph 15 of Econocaribe's Terms and Conditions of Service provides:

15.2 Merchant shall be liable for and shall indemnify the Carrier against all loss, damage, delay, fines, attorney fees and/or expenses arising from any breach of any of the warranties in clause 14.3 or from any other cause whatsoever in connection with the Goods for which the Carrier is not responsible.

15.3 The merchant shall comply with all regulations or requirements of customs, port and other authorities, and shall bear and pay all duties, taxes, fines, imposts, expenses or losses including, without prejudice to the generality of the foregoing Freight for any additional Carriage undertaken, incurred or suffered by reason thereof, or by reason of any illegal, incorrect or insufficient declaration, or by reason of any illegal, incorrect or insufficient declaration, marking, numbering or addressing of the Goods, and shall indemnify the Carrier in respect thereof.

10. Paragraph 14 of Econocaribe's Bill of Lading and Conditions of Service provides:

14.3 The Shipper warrants to the Carrier that the particulars relating to the Goods as set out on the reverse hereof have been checked by the Shipper on receipt of this bill of lading and that such particulars, and any other particulars furnished by or on behalf of the Shipper, are adequate and correct. The Shipper also warrants that the Goods are lawful goods, and contain no contraband, drugs, other illegal substances or stowaways, and that the goods will not cause loss, damage or expense to the Carrier, or to any other cargo during the Carriage.

11. Econocaribe in turn contracted with Maersk Line ("Maersk") for the shipment via the vessel "CMA CGM VIVALDI," and in accordance with Amoy's instructions made Victory Maritime Service ("Victory China") the consignee at destination. *See* Exhibit "F", Amoy Instructions. Maersk took possession of the containers along with other related paperwork on or about May 29, 2013 for purposes of shipment to China. *See* Exhibit "G", Maersk Bill of Lading.

12. The arrival date was June 17, 2013. On or about that date Chinese Customs opened the containers for inspection, and found that the contents were in fact goods prohibited entry into China, i.e. baled used truck tires. It seized the four containers

from Maersk Line, the importing carrier, and Maersk's notification of this fact then went to Econocaribe and Amoy. *See* Exhibit "B."

13. On July 9, 2013 Maersk informed Econocaribe that the consignee Victory China denied interest in the cargo, and that Amoy needed to nominate another shipper for the return bill of lading. Econocaribe immediately forwarded this information to Amoy. *See* Exhibit "H."
14. Although Amoy preferred to have the cargo abandoned in China, abandonment is simply not an option under Chinese Customs law. *See* Exhibit "I," George Amador email dated July 17, 2013 in which he stated that "As the cargo owner [Amoy] absolutely can't abandon the containers, now they must find new buyer at destination or arrange re-export." *See also* Exhibit "J," Section 29 of Chinese Customs Regulation on Import of Solid Waste Management Practices. Section 29 of Chinese Customs Regulation on Import of Solid Waste Management Practices provide that Chinese Customs shall order the importer or the carrier to return the solid waste back to its country of origin within a prescribed period.
15. Amoy claimed that its abandonment letter released its responsibility for the return and/or disposition of the cargo. *See* ¶ 7 of Respondent's Answer to the Complaint. *See also* Exhibit "D," Melissa Chen email dated May 9, 2014 in which she stated that "[w]hen the abandonment letter was signed to Maersk last year, I was no longer expecting to receive emails instructing to taking back these containers. Maersk has these containers since last year, they were aware of the situation ..., and it is up to them for letting the containers sitting at port or solving this problem sooner."

16. In fact, abandonment is not an option and it does not release shipper of liability. Maersk requested Amoy abandonment letter only to see if it could pressure Chinese Customs to order disposition. *See* Exhibit "K," Barbara Surez email dated May 14, 2014. Chinese Customs does not necessarily react to shipper's abandonment letter. *Id.* and Exhibit "L," Barbara Surez email dated on June 9, 2014 in which she stated "China Customs controls and decides when disposal can be arranged and for that reason."
17. Amoy could not find a buyer at the destination, therefore the return to U.S. was the only possible option. *See* Exhibit "M," Melissa Chen email dated July 1, 2013 in which she responded to John Kamada that she could not find a buyer in China.
18. On or about April 2, 2014, Chinese Customs issued the order to release the four containers with the condition that they be shipped back to their country of origin. *See* Exhibit "N," Barbara Surez email dated April 2, 2014 in which she stated "[j]ust this morning that Customs is ordering these containers to return to origin, as cargo is "curbaled tires," which is a restricted commodity."
19. As of June 11, 2014, China Customs had not released cargo. *See* Exhibit "O," Barbara Surez email dated June 11, 2014.
20. Amoy has never nominated either a shipper or consignee for the return of the cargo, leaving Econocaribe unable to repatriate the cargo. *See* ¶ 7 of Answer to the Complaint. *See also* Exhibit "P," Melissa Chen email dated May 13, 2014 in which she stated "I [would] not take the containers back. Carriers have their solutions for this kind of situation and I suggest you not to agree for taking them back;" and Exhibit "D," Melissa Chen email dated May 9, 2014 in which she stated

"[u]nfortunately, I [was] not able to come up with the money to cover these storages, nor taking the containers back after all these time."

21. Econocaribe entered into agreement with Maersk that Maersk will ship the four containers back to U.S.
22. The original demurrage charge was \$172,897 and was mitigated to \$70,000 - an amount which has been paid by Econocaribe to Maersk. *See* Exhibit "Q."
23. The return freight is estimated to be \$17,300. *See* Exhibit "R," Maersk Bill of Lading.
24. Customs clearance, dray and cost of destruction are estimated to be \$9,000. After the destruction of returned used tires, Econocaribe will provide an accurate accounting.
25. Amoy admitted liability as to demurrage costs, return freight, customs clearance, dray, and destruction costs. *See* Exhibit "C," Melissa Chen email dated April 15, 2014 in which she stated "the total cost listed below is really expensive and I can't afford to pay them. I know is not related to you and to the case." The total cost mentioned in the email refers to the demurrage costs, return freight, customs clearance, dray and destruction, etc. "You" refers to John Kamada and Econocaribe.
26. Amoy has steadfastly refused to provide payment for the any resulting costs.

ARGUMENTS

I. Legal Standard for Partial Summary Judgment

Summary judgment is appropriate when the pleadings and the record demonstrate that "there is no genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law." Fed. R. Civ. P. 56(a). The party seeking summary judgment may support its motion by "identifying those portions of 'the pleadings, depositions, answers to interrogatories, and admissions on file, together with the affidavits, if any,' which it believes demonstrate the

absence of a genuine issue of material fact.” *Maier Terminals, LLC v. Port Authority of New York and New Jersey*, 2011 WL 7144003, at *7-8 *(FMC Docket 08-03) (citing *Celotex Corp. v. Catrett*, 477 U.S. 317, 323 (1986)). The administrative law judge must view the facts in the light most favorable to the nonmoving party, giving the nonmoving party the benefit of all justifiable inferences derived from the evidence in the record. *Id.* (citing *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 249 (1986)). A motion for summary judgment should be granted only when genuine disputes of material fact do not exist. *Id.* (citation omitted). “It is axiomatic that where questions of law alone are involved in a case, summary judgment is appropriate.” *Id.* (citation omitted). Where the relevant facts are not in dispute and only one conclusion can be drawn from those facts, entry of summary judgment may be appropriate. *Id.* (citation omitted).

The party moving for summary judgment bears the initial burden of identifying evidence that demonstrates the absence of any genuine issue of material fact. The mere existence of a factual dispute will not in and of itself defeat an otherwise properly supported motion for summary judgment. However, “[w]here the record taken as a whole could not lead a rational trier of fact to find for the non-moving party, there is no ‘genuine issue for trial.’” *Kawasaki Kisen Kaisha, Ltd. v. The Port Authority of New York and New Jersey*, 2014 WL 5316333, at *1 (FMC Docket 11-12)(internal citation omitted).

II. Application to the Undisputed Facts

A. Violation of 46 U.S.C. § 41104(a)(A)

There is no dispute as to whether or not Amoy misdeclared the cargo as new auto parts when in fact it was used baled truck tires. False manifestation of cargo on a bill of lading and transportation of goods under tariff misdeclaration is a violation of 46 U.S.C. § 41104(a)(A). 46 U.S.C. § 41104(a)(A) provides:

A common carrier, either alone or in conjunction with any other person, directly or indirectly, may not ... provide service in the liner trade that is ... not in accordance with the rates, charges, classifications, rules, and practices contained in a tariff published or a service contract entered into under chapter 405 of this title ...

46 C.F.R. § 502.2 defines common carrier as:

... a person holding itself out to the general public to provide transportation by water of cargo between the United States and a foreign country for compensation that:

(1) Assumes responsibility for the transportation from port or point of receipt to the port or point of destination; and

(2) Utilizes, for all or part of that transportation, a vessel operating on the high seas or the Great Lakes between a port in the United States and a port in a foreign country, except that the term does not include a common carrier engaged in ocean transportation by ferry boat, ocean tramp, or chemical parcel tanker or by a vessel when primarily engaged in the carriage of perishable agricultural commodities:

(i) If the common carrier and the owner of those commodities are wholly-owned, directly or indirectly, by a person primarily engaged in the marketing and distribution of those commodities and

(ii) Only with respect to the carriage of those commodities.

Amoy is a common carrier because it is an Ocean Transportation Intermediary under Federal Maritime Commission license number 019113N. Amoy declared the cargo as "auto parts (new)" when entering into a service contract with Econocaribe. But in fact the cargo was baled used truck tires. Therefore, Amoy provided service that is not in accordance with classification contained in the Econocaribe - Amoy contract. Consequently, Amoy has violated Violation of 46 U.S.C. § 41104(a)(A).

B. Violation of 46 U.S.C. § 41104(c)

46 U.S.C. § 41102(c) provides that "[a] common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce *just and reasonable regulations and practices* relating to or connected with receiving, handling, storing,

or delivering property." Amoy is a common carrier. Amoy's practice of delivering misdeclared cargo then refusing to assist in repatriating it back to the U.S. (by failing to nominate a shipper or a consignee for the return of cargo), is simply unjust or unreasonable.

Amoy argues that it did not need to nominate a shipper or a consignee for the return of the cargo because "[it] provided [Econocaribe] with a letter of abandonment of the cargo." However, this explanation does not establish that Amoy's practice was "just and reasonable" because abandonment at China is simply not possible - cargo has to be returned to the U.S. Amoy cannot escape its responsibility for the return and destruction of the cargo by abandoning the cargo.

C. Violation of 46 C.F.R. §515.31(e)

46 C.F.R. §515.31(e) provides that "[n]o licensee shall prepare or file or assist in the preparation or filing of any claim, affidavit, letter of indemnity, or other paper or document concerning an ocean transportation intermediary transaction which it has reason to believe is false or fraudulent, nor shall any such licensee knowingly impart to a principal, shipper, common carrier or other person, false information relative to any ocean transportation intermediary transaction."

Amoy is a licensee of the FMC. There is no dispute that Amoy had imparted to Econocaribe, and consequentially to Maersk, false information relative to an ocean transportation intermediary transaction. Although, in Amoy's Answer, it denies that it "willfully, intentionally, and knowingly misdeclared the cargo as new auto parts," such denial does not create a genuine a factual dispute. Parties' document production and John Kamada's affidavit supply the fact: Krystal Lee, Amoy's employee at the time of booking, requested Ariel Martinez, Econocaribe's

employee, to book 4 containers for "Auto Parts (New);" after Chinese Customs discovered that the cargo was in fact baled used truck tires, Melissa Chen, Amoy's CEO, told John Kamada that Krystal Lee had intentionally misdeclared cargo as new auto parts before and as a result, Amoy had paid another NVOCC for costs of repatriation. What is clear is that, regardless of whether Melissa Chen knew or should have known that the information was false, Krystal Lee *knew* that she was imparting false information to Econocaribe. An employee's knowledge is imputed to the employer. *See Mitsui O.S.K. Lines Ltd. v. Global Link Logistics, Inc., et. al.*, 2014 WL 5316330, at *12 (FMC Docket 09-01) (finding employees' knowledge imputed to employer)(citing RESTATEMENT (THIRD) OF AGENCY § 5.03, Comment a. that "a principal is charged with notice of facts that an agent knows or has reason to know."). Therefore, the record is clear that Amoy had the essential knowledge of false information and willfully, intentionally, and knowingly misdeclared the cargo as new auto parts.

Further, under the doctrine of *respondeat superior*, Amoy is liable for Krystal Lee's willful conduct. *See In re Ivan F. Boesky Sec. Litig.*, 36 F.3d 255, 265 (2d Cir. 1994) ("If an employee of the agent commits the act constituting a breach of the agent's fiduciary duty to the principal, under the doctrine of *respondeat superior* the agent is liable to the principal only if the agent's employee was acting within the scope of his employment.) Krystal Lee was employed as a sales and marketing person. Booking spaces with and providing information to NVOCCs was certainly within her scope of employment. Therefore, Amoy is liable for Krystal Lee's misconduct.

D. Violation of Section 10(a)(1) of the Shipping Act of 1984, as amended

10(a)(1) of the Shipping Act of 1984 provides that "[a] person may not knowingly and willfully, directly or indirectly, by means of false billing, false classification, false weighing, false report of weight, false measurement, or any other unjust or unfair device or means, obtain or attempt to obtain ocean transportation for property at less than the rates or charges that would otherwise apply." 46 U.S.C. §41102(a).

There is no dispute that Krystal Lee, an employee of Amoy, knowingly and willfully, gave Econocaribe false classification in order to obtain the rate Amoy eventually was charged. There could not be any dispute that the rate was less than rates or charges that would otherwise apply - had Econocaribe known that the cargo was in fact prohibited entry to China, it would have never agreed to ship the cargo, no matter how much Amoy would be willing to pay. Further, as discussed above, Krystal Lee's knowledge is imputed to Amoy, therefore, Amoy did knowingly and willfully by false classification obtain a less than applicable rate.

E. Violation of Section 10(b)(1) of the Shipping Act of 1984, as amended

Section 10(b)(1) of the Shipping Act provides that "[n]o common carrier, either alone or in conjunction with any other person, directly or indirectly, may ... allow any person to obtain transportation for property at less than the rates or charges established by the carrier in its tariff or service contract by means of false billing, false classification, false weighing, false measurement, or by any other unjust or unfair device or means ..." 46 U.S.C. Appx. §1709(b)(1).

There are no disputes as to whether Amoy is a common carrier within the definition of Shipping Act; or whether it allowed its shipper to obtain transportation of the used baled truck tires at a less than applicable rates; or whether Amoy obtained such rate by false classification.

There is simply no genuine issue of material fact to prevent the finding of violation of Section 10(b)(1) of the Shipping Act of 1984, as amended.

F. Violation of Section 10(b)(2)(A) of the Shipping Act of 1984, as amended

Section 10(b)(2)(A) of the Shipping Act provides "[n]o common carrier, either alone or in conjunction with any other person, directly or indirectly, may ... provide service in the liner trade that ... is not in accordance with the rates, charges, classifications, rules, and practices contained in a tariff published or a service contract entered into under section 1707 of this Appendix ..." 46 U.S.C. Appx. § 1709(b)(2)(A).

Amoy is a common carrier within the definition of the Shipping Act. The service contract between Amoy and Econocaribe is governed by Econocaribe's Terms and Conditions. Paragraph 15 of Econocaribe's Terms and Conditions requires that Amoy bear the liability and indemnify Econocaribe "against all loss, damage, delay, fines, attorney fees and/or expenses arising from any breach of any of the warranties in clause 14.3 or from any other cause whatsoever in connection with the Goods for which the Carrier is not responsible." According to Clause 14.3, Amoy warranted to Econocaribe that the information or description of the cargo had been checked by Amoy and that this information was adequate and correct. By misdeclaring the cargo, Amoy breached its warranty. Also, according to Clause 14.3, Amoy warranted that the cargo was lawful goods and that the cargo will not cause loss, damage or expense to Econocaribe. By giving baled used truck tires, which was prohibited entry into China, Amoy breached its warranty. Because of these breaches, Amoy should bear all the cost of resulting loss, damage, attorney fees and/or expenses arising from the breach.

Further, Clause 15.3 of the Terms and Conditions requires Amoy to comply with "all regulations or requirements of customs, port and other authorities", and "shall bear and pay all ... any additional Carriage undertaken, incurred or suffered by reason [of failure of compliance with regulations or requirements of customs, port and other authorities], or by reason of any illegal, incorrect or insufficient declaration, or by reason of any illegal, incorrect or insufficient declaration ..." and "shall indemnify the Carrier." Therefore, by giving false, illegal declaration, Amoy failed to comply with Chinese Customs regulations or requirements, and caused additional carriage (the return freight) and destruction costs. Amoy shall pay all such costs and shall indemnify Econocaribe. By steadfastly refusing to pay such, Amoy violates Section 10(b)(2)(A) of the Shipping Act of 1984, as amended.

III. ECONOCARIBE HAS BEEN DAMAGED

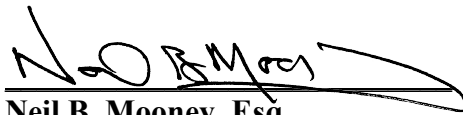
As a direct result of Amoy's violation of the Shipping Act, baled used truck tires were shipped to China and seized by Chinese Customs. These baled used truck tires have to be returned to the U.S. In order to mitigate the demurrage costs, Econocaribe entered into an agreement with Maersk to ship the cargo back to the U.S., even though Amoy refuses to ship the cargo back to the U.S. These used tires will be destroyed upon entry into the U.S. Amoy's violation of the Shipping Act gave rise to the demurrage charges, additional carriage, customs clearance, dray and subsequent destruction costs. Amoy's steadfast refusal to nominate a shipper or consignee leaves Econocaribe no choice but to pay such costs in advance. These costs are "actual injury" under 46 U.S.C. § 41305(a).

CONCLUSION

For the foregoing reasons, Amoy has violated the various provisions of the Shipping Act and regulations promulgated thereunder and has caused actual injury to Econocaribe in the amount of \$26,300 for return freight, customs clearance, dray, and destruction, and \$70,000 for demurrage costs. Econocaribe is entitled to an Order granting its Motion and a judgment for damages, including but not limited to a) costs for return freight, customs clearance, dray, and destruction, b) demurrage costs and c) for an award of its attorney's fees, costs and prejudgment interest—all the foregoing amounts to be proven at a subsequent hearing.

DATED: December 22, 2014

THE MOONEY LAW FIRM, LLC



Neil B. Mooney, Esq.

Fla. Bar No. 0169463

nmooney@customscourt.com

1911 Capital Circle N.E.

Tallahassee, FL 32308

Tel. 850-893-0670

Fax. 850-391-4228

Counsel for Complainant

Econocaribe, Inc.

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **COMPLAINANT'S MOTION FOR PARTIAL SUMMARY JUDGMENT** was sent to the below-mentioned counsel via email on December 22, 2014.

Joseph N. Mirkovich, Esq.
RUSSELL MIRKOVICH & MORROW
Email: jmirkovich@rumlaw.com
Attorneys for Respondent
AMOY INTERNATIONAL LLC.

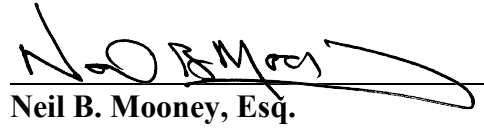

Neil B. Mooney, Esq.

Exhibit A

From: Ariel Martinez [<mailto:amartinez@econocaribe.com>]
Sent: Monday, May 20, 2013 1:50 PM
To: Krystal / Amoyline
Cc: GABY@AMOYLINE.COM; 'Melissa / Amoy Line'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Thank you for your booking Krystal.

Please find the booking confirmation attached.

Let me know if you have any questions.

Ariel Martinez

Econocaribe Consolidators, Inc.

637 EAST ALBERTONI ST.
SUITE 104
CARSON CA 90746

Tel 310.817.2746 Fax 310.817.2751

Email: amartinez@econocaribe.com



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From: Krystal / Amoyline [<mailto:krystal@amoyline.com>]
Sent: Monday, May 20, 2013 12:59 PM
To: Ariel Martinez
Cc: GABY@AMOYLINE.COM; 'Melissa / Amoy Line'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Hi Ariel,

Thank you!

Thank You

Krystal Lee

Sales & Marketing

Mandatory ISF begins January 26th, 2010!
Please [click here](#) to download our ISF Form.

~~~~~  
**Amoy International LLC**

**[FMC License No.: 019113N] [FMC Bond No.: 8941895]**

**[China MOC License No.: MOC-NV003586]**

14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)

Ph: (626) 855-3077 Fax: (626) 855-3078

649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)

Ph: (347) 689-9255 Fax: (347) 689-9267

Website: [www.amoyline.com](http://www.amoyline.com) E: [krystal@amoyline.com](mailto:krystal@amoyline.com)

Follow us on [Twitter](#)! Skype: krystal.amoyline

Website: [www.amoyline.com](http://www.amoyline.com)  
~~~~~

P Save a tree. Please don't print this e-mail unless it's really necessary! :)



From: Ariel Martinez [<mailto:amartinez@econocaribe.com>]
Sent: Monday, May 20, 2013 11:58 AM
To: Krystal / Amoyline
Cc: GABY@AMOYLINE.COM; 'Melissa / Amoy Line'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Thank you for the booking Krystal.

Maersk Booking# 560323561

CMA CGM VIVALDI V.530W

ERD 05/20

C/O 05/24

ETD 05/29

ETA 06/17

I will send over the confirmation asap.

Ariel Martinez

Econocaribe Consolidators, Inc.

637 EAST ALBERTONI ST.
SUITE 104
CARSON CA 90746

Tel 310.817.2746 Fax 310.817.2751

Email: amartinez@econocaribe.com



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From: Krystal / Amoyline [<mailto:krystal@amoyline.com>]
Sent: Monday, May 20, 2013 11:46 AM
To: Ariel Martinez
Cc: GABY@AMOYLINE.COM; 'Melissa / Amoy Line'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Hello Ariel,

Please make a booking for 4 containers for this weeks cut o□

4x40'GP

Commodity:Auto Parts (New)

Please let me know if you have any questions, thank you

Thank You

Krystal Lee

Sales & Marketing

Mandatory ISF begins January 26th, 2010!
Please [click here](#) to download our ISF Form.

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## Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]

[China MOC License No.: MOC-NVO03586]

14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)

Ph: (626) 855-3077 Fax: (626) 855-3078

649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)

Ph: (347) 689-9255 Fax: (347) 689-9267

Website: [www.amoyline.com](http://www.amoyline.com) E: [krystal@amoyline.com](mailto:krystal@amoyline.com)

Follow us on [Twitter](#)! Skype: krystal.amoyline

Website: [www.amoyline.com](http://www.amoyline.com)

~~~~~  
P Save a tree. Please don't print this e-mail unless it's really necessary! :)



From: Ariel Martinez [<mailto:amartinez@econocaribe.com>]
Sent: Friday, May 17, 2013 4:01 PM
To: Krystal / Amoyline
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Hello Krystal,

Thank you for your request. We are pleased to offer you with the quote attached.

The next available vessel is:

CMA CGM VIVALDI V.530W

C/O 05/24

ETD 05/29

ETA 06/17

If you have any questions or would like to proceed with a booking please do not hesitate to contact me.

Ariel Martinez

Export Customer Service Rep.

ECONOCARIBE CONSOLIDATORS, INC. – Los Angeles

E-Mail: amartinez@econocaribe.com AOL IM: eciamartinez

Tel 310.817.2746 Fax 310.817.2751



From: Krystal / Amoyline [<mailto:krystal@amoyline.com>]
Sent: Friday, May 17, 2013 3:26 PM
To: Ariel Martinez
Subject: New Booking from Oakland to Xingang

Hi Ariel,

Hope all is well with you.

Please help advise the Maersk Sailing schedule for this shipment.

We have cargo ready to load.

Please advise the sailing schedule and confirm the rate for a 40'HQ

Please call or email me if you have any questions or concerns, thank you

Thank You

Krystal Lee

Sales & Marketing

Mandatory ISF begins January 26th, 2010!
Please [click here](#) to download our ISF Form.

Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]

[China MOC License No.: MOC-NV003586]

14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)

Ph: (626) 855-3077 Fax: (626) 855-3078

649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)

Ph: (347) 689-9255 Fax: (347) 689-9267

Website: www.amoyline.com E: krystal@amoyline.com

Follow us on [Twitter](#)! Skype: krystal.amoyline

Website: www.amoyline.com

P Save a tree. Please don't print this e-mail unless it's really necessary! :)



Exhibit B



Exhibit C

From: Melissa / Amoy Line [<mailto:melissa@amoyline.com>]
Sent: Tuesday, April 15, 2014 11:24 AM
To: Elizabeth Sanchez
Cc: John Kamada; Lygia Reciola-Bratton
Subject: RE: ECCI BKG# LAC-CNXGG-04-439024 CARRIER BKG# 560323561

Hi Elizabeth

Krystal is no longer with the company.

For below case, please help us to negotiate the costs. the shipper vanished and we had hard time getting original supplier to accept the loads back. I have hired collection agency, attorney and all, but none of these people could be found.

It has been long time we waited to hear from MSK about this freight. if any suggestions you can help to come up and take care of this problem, please let me know. I want to solve this problem soonest possible.

the total cost listed below is really expensive and I can't afford to pay them. I know is not related to you and to the case, but Krystal has caused big problems with other shipments too and we have lost way too much money in past 2 years, law suits, penalties and etc.

Please help me to negotiate and I will again look for people in US can accept the container back.

thank you,

Melissa Chen

Amoy International LLC

[FMC License No.: 019113N] [FMC Bond No.: 8941895]

[China MOC License No.: MOC-NVO03586] [US DOT : MC-859087]

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Ph: (626) 855-3077 Fax: (626) 855-3078 Direct: (626) 616-2008

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Ph: (347) 689-9255 Fax: (347) 689-9267

Website: www.amoyline.com skype: amoyline

Please [click here](#) to download our ISF Form.

 Save a tree. Please don't print this e-mail unless it's really necessary! :)

Exhibit D

From: Melissa / Amoy Line [<mailto:melissa@amoyline.com>]
Sent: Friday, May 09, 2014 1:22 PM
To: John Kamada
Cc: Lygia Reciola-Bratton
Subject: RE: ECCI BKG# LAC-CNXGG-04-439024 CARRIER BKG# 560323561

Hi John

Being victim of the case, I fully understand this shipment has also caused Maersk lots of problems. We've tried everything we could in the very beginning when we suspected something wasn't going right, from tracing back to trucker to vendor and hiring attorney after the shipper, but we weren't able to get any help and we have completely lost contact with shipper.

I have just took care of lawsuits with MSC and Zim due to previous huge losses with similar problem caused by the same sales. We are struggling to getting thru recoveries at moment. When the abandonment letter was signed to Maersk last year, I was no longer expecting to receive emails instructing to taking back these containers. Maersk has these containers since last year, they were aware of the situation before even containers arrive to port, and it is up to them for letting the containers sitting at port or solving this problem sooner.

Unfortunately, I'm unable to come up with the money to cover these storages, nor taking the containers back after all these time. Please kindly advise, if any other way we can work this through.

Thank you,

Melissa Chen

Amoy International LLC

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[China MOC License No.: MOC-NVO03586] [US DOT : MC-859087]

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Website: www.amoyline.com skype: amoyline

Please [click here to download our ISF Form](#).

 **Save a tree. Please don't print this e-mail unless it's really necessary! :)**

Exhibit E

ECONOCARIBE		NON-NEGOTIABLE		BILL OF LADING	
SHIPPER/EXPORTER AMOY INTERNATIONAL 14145 PROCTOR AVE,SUITE 14 CITY OF INDUSTRY, CA 91746			DOCUMENT NO. ECCI-LAX-CNXGG-04-439024		
CONSIGNEE VICTORY MARITIME SERVICES (CHINA)JLTD TIANJIN BRANCH 504, TOWER C, CITY CENTER, XI KANG ROAD, HE PING DISTRICT, TIANJIN , CHINA TEL: 86-22-23336411/33/55 FAX: 86-22-23336400 CTC:MS LIU HUI			EXPORT REFERENCES		
			FORWARDING AGENT - REFERENCES		
NOTIFY PARTY SAME AS CONSIGNEE			POINT AND COUNTRY OF ORIGIN		
PLACE OF RECEIPT			DOMESTIC ROUTING/EXPORT INSTRUCTIONS Issued By (15) LOS ANGELES - CA		
EXPORTING CARRIER(Vessel)(Flag) CMA CGM VIVALDI V.530W			ONWARD INLAND ROUTING		
PORT OF LOADING OAKLAND/CA/UNITED STATES		SHIPPER LOAD, STOW, COUNT AND SEAL			
SEA PORT OF DISCHARGE XINGANG/CHINA					
FINAL DELIVERY TO Xingang/CHINA					
PARTICULARS FURNISHED BY SHIPPER					
MARKS AND NUMBERS	NO.OF PKGS	DESCRIPTION OF PACKAGES AND GOODS	GROSS WEIGHT	VOLUME	
PONU-175078-8 SEAL: 2300720	1X40'	STC: 25 Packages AUTO PARTS	22,000 KGS	50 CBM	
MSKU-612925-9 SEAL: 2300719	1X40'	STC: 25 Packages AUTO PARTS	22,000 KGS	50 CBM	
PONU-187761-7 SEAL: 2300718	1X40'	STC: 25 Packages AUTO PARTS	22,000 KGS	50 CBM	
MRKU-023272-0 SEAL: 2300717	1X40'	STC: 25 Packages AUTO PARTS LADEN ON BOARD: 05/29/2013 ON ORIGINALS DUE TO PAYMENT EXPRESS RELEASE AES ITN: X20130524032027	22,000 KGS	50 CBM	
FREIGHT PREPAID					
Declared Value Per Package if Value is More Than \$500. - per Package USD _____					
These Commodities, Technology or Software Were Exported From The United States in Accordance With The Export Administration Regulations.					
Diversion Contrary To U.S Law Prohibited.					
OCEAN FREIGHT US\$ 620.00 PPD BUNKER SURCHARGE US\$ 2,400.00 PPD			TRANSPORTATION PURSUANT TO THIS BILL OF LADING IS SUBJECT TO CONDITIONS SET FORTH IN ECONOCARIBE PUBLISHED TARIFF.(THREE).BILL OF LADING, ALL OF THE SAME TENOR AND DATE, ONE OF WHICH BEING ACCOMPLISHED.THE OTHER TO STAND VOID.		
PREPAID TOTAL US \$ \$3,020.00 THREE THOUSAND TWENTY DOLLARS AND ZERO CENTS					
Shipper: Bill of Lading No. ECCI-LAX-CNXGG-04-439024			By ECONOCARIBE		
AMOUNT0001 (AMOY INTERNATIONAL)			29-May-2013		
Please Contact:			OAKLAND/CA/UNITED STATES		
VICTORY MARITIME SERVICES (CHINA?JLTD 504?CTOWER C?CCITY CENTER?CXI KANG ROAD HE PING DISTRICT?CTIANJIN?CCHINA TEL?F86-22-23336411/33/55 FAX?F86-22-23336400 CTC:MS LIU HUI.			PORT		
			Page 1 of 1 (REV: 0)		

MULTIMODAL TRANSPORT BILL OF LADING

1. DEFINITIONS

"Carriage" means the whole or any part of the carriage, loading, unloading, storing, warehousing, handling, and any and all other services whatsoever undertaken by the Carrier in relation to the Goods.

"Carrier" means **Econocaribe Consolidators, Inc.**, on whose behalf this Bill of Lading has been signed.

"Container" includes any container including an open top container, flat rack, platform, trailer, transportable tank, lift van, pallet, or any similar article of transport and any connected equipment used to consolidate goods.

"Freight" includes all charges payable to the Carrier in accordance with the applicable Tariff that can be found at www.econocaribe.com and this bill of lading.

"Goods" mean the cargo described on the face of this Bill of Lading and, if the cargo is packed into container(s) supplied or furnished by or on behalf of the Merchant, include the container(s) as well.

"Hague Rules" means the provisions of the International Convention for the Unification of Certain Rules relating to Bills of Lading signed at Brussels on 25th August 1924 and includes the amendments by the Protocol signed at Brussels on 23rd February 1968, but only if such amendments are compulsorily applicable to this bill of lading. It is expressly provided that nothing in this bill of lading shall be construed as contractually applying the said Rules as amended by said Protocol.

"Holder" means any Person for the time being in possession of this bill of lading to or in whom rights of suit and/or liability under this bill of lading have been transferred or vested.

"Merchant" means and includes the shipper, the consignee, the receiver, the holder of this bill of lading, the owner of the Goods or person entitled to the possession of the Goods and the servants or agents acting on behalf of any of these including, but not limited to, freight forwarders, and their principals, all of whom shall be jointly and severally liable to the Carrier for the payment of all Charges, and for the performance of the obligations of any of them under this bill of lading.

"Multimodal Transport" arises if the Place of Receipt and/or the Place of Delivery are indicated on the reverse hereon in the relevant spaces.

"Ocean Transport" means the same as Port-to-Port Shipment.

"Package" is the largest individual unit of partially or completely covered or contained cargo made up by or for the Shipper which is delivered and entrusted to Carrier, including palletized units and each container stuffed and sealed by the Shipper or on its behalf, although the Shipper may have furnished a description of the contents of such sealed container on this bill of lading.

"Person" includes an individual, corporation, or other legal entity.

"Port-to-Port Shipment" arises when the Carriage is not Multimodal.

"Subcontractor" includes owners, charterers, operators of vessels, stevedores, terminal and groupage operators, road and rail transport operators, warehousing and any independent contractors employed by the Carrier performing the Carriage or whose services or equipment have been used for the Carriage and any direct or indirect Subcontractors, servants and agents thereof whether in direct contractual privity or not.

"Terms and Conditions" means all terms, rights, defenses, provisions, conditions, exceptions, limitations, and liberties hereof.

"US COGSA" means the US Carriage of Goods by Sea Act 1936.

"Vessel" means any water borne craft used in the Carriage under this Bill of Lading which may be a feeder vessel or an ocean vessel

2. CARRIER'S TARIFF

The terms and conditions of the Carrier's applicable Tariff found at www.econocaribe.com are incorporated herein. Attention is drawn to the terms therein relating to free storage time and to container and vehicle demurrage or detention. When the provisions of Section 46 CFR 532 are invoked, rates are unpublished and the Carrier's Rules Tariff, which is also found at www.econocaribe.com or upon request, applies. Copies of the relevant provisions of the applicable Tariff are obtainable from the Carrier upon request or by visiting www.econocaribe.com. In the case of any inconsistency between this bill of lading and the applicable Tariff, the Tariff shall prevail.

3. WARRANTY

In agreeing to these Terms and Conditions, the Merchant warrants that he is, or has the authority to contract on behalf of, the Person or Persons owning or entitled to possession of the Goods and this bill of lading and is therefore liable for any and all Freight in connection with the Goods.

4. SUBCONTRACTING

4.1 The Carrier shall be entitled to subcontract on any terms the whole or any part of the Carriage of the goods. It is hereby agreed that

- a) No Subcontractor, agent, or servant shall in any circumstances whatsoever be under any liability whatsoever to the Merchant for any loss, damage or delay of any kind arising or resulting directly or indirectly from any act, neglect or default on the Subcontractor, agent or servant's part while acting in the course of or in connection with the Goods or the Carriage of the Goods.
- b) (i) The Merchant undertakes that no claim or allegation whether arising in contract, bailment, tort or otherwise shall be made against any servant, agent, or Subcontractor of the Carrier which imposes or attempts to impose upon any of them or any vessel owned or chartered by any of them any liability whatsoever in connection with the Goods or the Carriage of the Goods whether or not arising out of negligence on the part of such Person. The Subcontractor, agent, or servant shall also be entitled to enforce the foregoing covenant against the Merchant; (ii) and, if any such claim or allegation should nevertheless be made to indemnify the Carrier against all consequences thereof.
- c) Without prejudice to the generality of the foregoing provisions of this clause, every exemption, limitation, condition and liberty contained herein (other than Art III rule 8 of the Hague Rules) and every right, exemption from liability, defense and immunity of whatsoever nature applicable to the Carrier or to which the Carrier is entitled hereunder including the right to enforce any jurisdiction provision contained herein (clause 26) shall also be available and extend to every such Subcontractor, agent or servant, who shall be entitled to enforce the same against the Merchant.

4.2 The provisions of clause 4.1(c) including but not limited to the undertaking of the Merchant contained therein, shall extend to all claims or allegations of whatsoever nature against other Persons chartering space on the carrying vessel.

4.3 The Merchant further undertakes that no claim or allegation in respect of the Goods shall be made against the Carrier by any Person other than in accordance with the Terms and Conditions of this bill of lading which imposes or attempts to impose upon the Carrier any liability whatsoever in connection with the Goods or the Carriage of the Goods, whether or not arising out of negligence on the part of the Carrier, and if any such claim or allegation should nevertheless be made, to indemnify the Carrier against all consequences thereof.

5. CARRIER'S RESPONSIBILITY: PORT-TO-PORT SHIPMENT

5.1 Where the Carriage is Port-to-Port, then the liability of the Carrier for loss or damage to the Goods occurring between the time of loading at the Port of loading and the time of discharge at the Port of Discharge shall be determined in accordance with any national law making the Hague Rules compulsorily applicable to this bill of lading, or in the case of shipments to or from the United States shall be determined by US COGSA or in any other case in accordance with the Hague Rules Articles 1-8.

5.2 The Carrier shall have no liability whatsoever for any loss or damage to the Goods while in its actual or constructive possession before loading or after discharge, howsoever caused. Notwithstanding the above, to the extent any applicable compulsory law provides to the contrary, the Carrier shall have the benefit of every right, defense, limitation and liberty in the Hague Rules as applied by clause 5.1 during such additional compulsory period of responsibility, notwithstanding that the loss or damage did not occur at sea.

5.3 Where US COGSA applies then the provisions stated in the said Act shall govern during Carriage to or from a container yard or container freight station at the Port of Loading before loading on the vessel or at the Port of Discharge before delivery to the inland carrier. If the Carrier is requested by the Merchant to procure Carriage by an inland carrier in the United States of America and the inland carrier in his discretion agrees to do so, such carriage shall be procured by the Carrier as agent only to the Merchant and Carrier shall have no liability for such carriage or the acts or omissions of such inland carrier.

5.4 In the event that the Merchant requests the Carrier to deliver the Goods: a) at a port other than the Port of Discharge; or b) at a place of delivery instead of the Port of Discharge, and the Carrier in its absolute discretion agrees to such request, such further Carriage will be undertaken on the basis that the Terms and Conditions of this bill of lading are to apply to such Carriage as if the ultimate destination

agreed with the Merchant had been entered on the reverse side of this bill of lading as the Port of Discharge or Place of Delivery.

6. CARRIER'S RESPONSIBILITY: MULTIMODAL TRANSPORT

Where the Carriage is Multimodal Transport, the Carrier undertakes to perform and/or in his own name to procure performance of the Carriage from the Place of Receipt or the Port of Loading whichever is applicable, to the Port of Discharge or the Place of Delivery, whichever is applicable. The Carrier shall have no liability whatsoever for loss or damage to the Goods occurring before or after the applicable points, and, the Carrier shall be liable for loss or damage occurring during the Carriage only to the extent provided herein:

6.1 Where the stage of Carriage where loss or damage occurred is not known,

(a) The Carrier shall be relieved of liability for any loss or damage where such loss or damage was caused by:

(i) an act or omission of the Merchant or Person acting on behalf of the Merchant other than the Carrier, his servant, agent or Subcontractor,

(ii) compliance with instructions of any Person entitled to give them,

(iii) insufficient or defective condition of packing or marks,

(iv) handling, loading, stowage or unloading of the Goods by the Merchant or any person acting on his behalf,

(v) inherent vice of the Goods,

(vi) strike, lock out, stoppage or restraint of labor, from whatever cause whether partial or general, with a nuclear incident,

(viii) any cause or event which the Carrier could not avoid and the consequences whereof he could not prevent by the exercise of reasonable diligence.

(b) The burden of proof that the loss or damage was due to a cause(s) or event(s) specified in clause 6.1 shall rest on the Carrier, but if there is any evidence the loss or damage is attributable to one or more cause or event and to specified in clause 6.1(a)(iii), (iv), or (v), it shall be presumed that it was so caused and the merchant shall however be entitled to prove that a loss or damage was not in fact caused either wholly or partly by one or more of these causes or events.

6.2 Where the stage of Carriage and where the loss or damage occurred is known, subject to clause 18, the liability of the carrier in respect of such loss or damage shall be determined:

(a) For shipments to or from the United States of America (i) by the provisions of US COGSA if the loss or damage occurred during a carriage by sea any waterborne Carriage in the U.S. or carriage to or from a container yard or container freight station at port of loading before loading that will be carrying vessels were at the port of discharge before delivery to the inland carrier and (ii) if the loss or damage occurred during any inland carriage in the U.S. in accordance with which ever imposes a lesser liability on the Carrier between either the contract of carriage or tariff of the inland carrier in whose custody the loss or damage the occurred or the provisions of U.S. COGSA.

(b) Where Clause 6.2(a) does not apply, by the provisions contained in any international convention or national law which provides: (i) cannot be deported from buy private contract to the detriment of the Merchant, and (ii) would it have applied if the merchant had made a separate indirect contract with the Carrier and respect of the particular stage of the carriage during which the loss or damage occurred and received as evidence pair of any particular document which must be issued if such international convention or national law shall apply; or

(c) Where neither clause 6.2(a) nor (b) applies then (i) by the Hague Rules Articles 1-8 if the loss or damage is known to have occurred during Carriage by sea or waterborne carriage not in the U.S.; and (ii) if the loss or damage occurred during get any inland carriage not in the U.S., In accordance with the contract of carriage or tariffs of any inland carrier in his custody the loss or damage occurred or in accordance clauses 6.1 and 7.2(c), which ever imposes lesser liability on the Carrier.

6.4 If the Merchant requests, and the Carrier agrees to amend the Place of Delivery, such amended Carriage will be undertaken on the basis that the Terms and Conditions of this bill of lading are to apply until the goods are delivered to the merchant at such amended Place of Delivery.

6.5 Where consignment of the Goods is on a direct and not "to order" basis, the Carrier has full discretion to release the Goods to the consignee or its nominee without collecting an original bill of lading.

7. COMPENSATION AND LIMITATION OF LIABILITY

7.1 Subject always to the Carrier's right to limit liability as provided for herein, if the Carrier is liable for compensation in respect of loss of or damage to the Goods, such compensation shall be calculated by

reference to the value of the Goods plus Freight and insurance if paid. The value of the Goods shall be determined with reference to the commercial invoice, customs declaration, any prevailing market price (at the place and time they are delivered or should have been delivered), production price or reasonable value of Goods of the same kind and/or quality.

7.2 Save as is provided in clause 7.3:

(a) If the Hague Rules apply as national law, by virtue of clause 5.1 or clause 6.2(b) of the Carrier's liability shall in no event exceed the amounts provided in the applicable national law and if the Hague Rules apply under clauses 5.1 or 6.2(c), the Carrier's liability shall in no event exceed GBP 100 per package or unit.

(b) For shipments to or from the U.S., the liability of the Carrier and/or Vessel shall not exceed US\$500 per package or customary freight unit, or any lesser limitation afforded per Clause 6.2(a)(ii).

(c) In all other cases, compensation shall not exceed 2 SDR per kilo of gross weight of the Goods lost or damaged.

7.3 The Merchant agrees and acknowledges that the Carrier has no knowledge of the value of the Goods, and higher compensation than that provided for in this bill of lading may be claimed only when, with the consent of the Carrier, (i) for multimodal shipments from the U.S. where U.S. inland carriage is undertaken, the Merchant elects to avoid any liability limitation provided herein by prepaying extra freight and opting for full liability under the Carmack Amendment by complying with the terms in Carrier's Tariff; and (ii) in all other cases, the Merchant declares and the Carrier states the value of the Goods declared by the Merchant upon delivery to the Carrier has been stated in the box marked "Declared Value" on the reverse of this bill of lading and extra freight is pre-paid. In that case, the amount of the declared value shall be substituted for the limits laid down in this bill of lading, and any partial loss or damage shall be adjusted pro rata on the basis of such declared value.

7.4 Nothing in this bill of lading shall operate to limit or deprive the Carrier of any statutory protection, defense, exception, or limitation of liability authorized by any applicable laws, statutes or regulations of any country. The Carrier shall have the benefit of the said laws, statutes or regulations as if it were the owner of any carrying ship or vessel.

8. GENERAL

8.1 The Carrier does not undertake that the Goods or any documents relating thereto shall arrive or be available at any point or place at any stage during the Carriage or at the Port of Discharge or the Place of Delivery at any particular time or to meet any particular requirement of any license, permission, sale contract, or credit of the Merchant or any market or use of the Goods and the Carrier shall under no circumstances whatsoever and howsoever arising be liable for any direct, indirect, or consequential loss or damage caused by delay. If the Carrier should nevertheless be held legally liable for any such direct or indirect or consequential loss or damage caused by such alleged delay, such liability shall in no event exceed the Freight paid for the Carriage.

8.2 Save as is otherwise provided herein, the Carrier shall under no circumstances be liable for direct or indirect or consequential loss or damage arising from any other cause whatsoever or for loss of profits.

8.3 Once the Goods have been received by the Carrier for Carriage the Merchant shall not be entitled neither to impede, delay, suspend or stop or otherwise interfere with the Carrier's intended manner of performance of the Carriage or the exercise of the liberties conferred by this bill of lading nor to instruct or require delivery of the Goods at other than the Port of Discharge or Place of Delivery named on the reverse hereof or such other Port or Place selected by the Carrier in the exercise of the liberties herein for any reason whatsoever including but not limited to the exercise of any right of stoppage in transit conferred by the Merchant's contract of sale or otherwise. The Merchant shall indemnify the Carrier against all claims, liabilities, loss, damages, costs delay, attorney fees and/or expenses caused to the Carrier, his Subcontractors, servants or agents or to any other cargo or to the owner of such cargo during the Carriage arising or resulting from any stoppage whether temporary or permanent in the Carriage of the Goods whether at the request of the Merchant, or in consequence of any breach by the Merchant of this clause, or in consequence of any dispute whatsoever in respect of the Goods including, but without restriction, disputes as to ownership, title, quality or description of and/or payment for the Goods involving any one or more party defined herein as the Merchant as between themselves or with any third party other than the Carrier and the liberties provided for in clauses 19 and 20 shall be available to the Carrier in the event of such stoppage.

8.4 The Terms and Conditions of this bill of lading shall govern the responsibility of the Carrier in connection with or arising out of the supplying of a Container to the Merchant whether before, during or after the Carriage.

9. NOTICE OF LOSS, TIME BAR

Unless notice of loss or damage and the general nature of such loss or damage be given in writing to the Carrier or his agents at the Place of Delivery (or Port of Discharge if no Place of Delivery is named on the reverse hereof) before or at the time of removal of the Goods into the custody of the Merchant or if the loss or damage is not apparent within three days thereafter, such removal shall be prima facie evidence of the delivery by the Carrier of the Goods as described in this bill of lading. In any event, the Carrier shall be discharged from all liability whatsoever in respect of the Goods unless suit is brought within one year after their delivery or the date when they should have been delivered.

10. APPLICATION OF TERMS AND CONDITIONS

The Terms and Conditions of whatever nature provided for in this bill of lading shall apply in any action against the Carrier for any loss or damage whatsoever (and, howsoever occurring and without restricting the generality of the foregoing, including delay, late delivery and/or delivery without surrender of this bill of lading) and whether the action be founded in contract, bailment or in tort and even if the loss or damage arose as a result of unseaworthiness, negligence or fundamental breach of contract.

11. SHIPPER-PACKED CONTAINERS

if a container has not been packed by the Carrier:

11.1 This bill of lading shall be a receipt only for such a Container

11.2 The Carrier shall not be liable for loss of or damage to the contents and the Merchant shall indemnify the Carrier against any injury, loss, damage, liability or expense whatsoever incurred by the Carrier if such loss of or damage to the contents and or such injury, loss, damage, liability or expense has been caused by all matters beyond his control including inter alia without prejudice to the generality of this exclusion :

- a) the manner in which the Container has been packed; or
- b) the unsuitability of the Goods for carriage in Containers; or
- c) the incorrect setting of any thermostatic, ventilations, or other special controls thereof; or
- d) the unsuitability or defective condition of the Container provided that, if the Container has been supplied by the Carrier this unsuitability or defective condition could have been apparent upon reasonable inspection by the Merchant at or prior to the time the Container was packed.

11.3 The Merchant is responsible for the packing and sealing of all shipper packed Containers and, if a shipper packed Container is delivered by the Carrier with any original seal intact, the Carrier shall not be liable for any shortage of Goods ascertained at delivery.

11.4 The Shipper shall inspect Containers before packing them and the use of Containers shall be prima facie evidence of their being sounds and suitable for use.

12. PERISHABLE CARGO

12.1 Goods, including Goods of a perishable nature, shall be carried in ordinary Containers without special protection, services or other measure unless there is noted on the reverse side of this bill of lading that the Goods will be carried in a refrigerated, heated, electronically ventilated or otherwise specifically equipped Container or are to receive special attention in any way.

The Merchant undertakes not to tender for Carriage any Goods which require refrigeration, ventilation or any other specialized attention without giving written notice of their nature and the required temperature or other setting of the thermostatic ventilation or other special controls to the Carrier. If the above requirements are not complied with the Carrier shall not be liable for any loss of or damage to the Goods howsoever arising.

12.2 The Merchant should note that refrigerated Containers are not designed

(a) to freeze down cargo which has not been presented for stuffing at or below its designated carrying temperature and the Carrier shall not be responsible for the consequences of cargo being presented at a higher temperature than that required for the Carriage, nor

(b) to monitor and control humidity levels, albeit a setting facility exists, in that humidity is influenced by many external factors and the Carrier does not guarantee the maintenance of any intended level of humidity inside any Container

12.3 The term "apparent good order and condition" when used in this bill of lading with reference to goods which require refrigeration, ventilation or other specialized attention does not mean that the Goods, when

received were verified by the Carrier as being at the carrying temperature, humidity level or other condition designated by the Merchant.

12.4 The Carrier shall not be liable for any loss or damage to the Goods arising from latent defects, derangement, breakdown, defrosting, stoppage of the refrigerating, ventilating or any other specialized machinery, plant, insulation and/or apparatus of the Container, vessel, conveyance, and any other facilities, provided that the Carrier shall before and at the beginning of the Carriage exercise due diligence to maintain the Container supplied by the Carrier in an efficient state.

13. INSPECTION OF GOODS

The Carrier shall be entitled, but under no obligation, to open and/or scan any package or Container at any time and to inspect the contents. If it appears at any time that the Goods cannot safely or properly be carried or carried further, either at all or without incurring any additional expense or taking any measures in relation to the Container or the Goods, the Carrier may without notice to the Merchant (but as his agent only) take any measures and/or incur any reasonable additional expense to carry or to continue the Carriage thereof, and/or sell or dispose of the Goods and/or to abandon the Carriage and/or to store them ashore or afloat, under cover or in the open, at any place, whichever the Carrier in his absolute discretion considers most appropriate, which sale, disposal, abandonment, or storage shall be deemed to constitute due delivery under this bill of lading. The Merchant shall indemnify the Carrier against any reasonable additional expense so incurred. The Carrier in exercising the liberties contained in this clause shall not be under any obligation to take any particular measures and shall not be liable for any loss, delay or damage howsoever arising from any action or lack of action under this clause.

14. DESCRIPTION OF GOODS

14.1 This bill of lading shall be prima facie evidence of the receipt by the Carrier in apparent good order and condition, except as otherwise noted, of the total number of Containers or other packages or units indicated in the box entitled "Carriers Receipt" on the reverse side hereof.

14.2 No representation is made by the Carrier as to the weight, contents, measure, quantity, quality, description, condition, marks, numbers or value of the Goods and the Carrier shall be under no responsibility whatsoever in respect of such description or particulars.

14.3 The Shipper warrants to the Carrier that the particulars relating to the Goods as set out on the reverse hereof have been checked by the Shipper on receipt of this bill of lading and that such particulars, and any other particulars furnished by or on behalf of the Shipper, are adequate and correct. The Shipper also warrants that the Goods are lawful goods, and contain no contraband, drugs, other illegal substances or stowaways, and that the Goods will not cause loss, damage or expense to the Carrier, or to any other cargo during the Carriage.

14.4 If any particulars of any Letter of Credit and/or Import License and/or Sales Contract and/or Invoice or Order number and/or details of any contract to which the Carrier is not a party are shown on the face of this bill of lading, such particulars are included at the sole risk of the Merchant and for his convenience. The Merchant agrees that the inclusion of such particulars shall not be regarded as a declaration of value and in no way increases Carrier's liability under this bill of lading.

15. MERCHANT'S RESPONSIBILITY

15.1 All of the Persons coming within the definition of Merchant in clause 1, including any principal of such Person, shall be jointly and severally liable to the Carrier for the due fulfillment of all obligations undertaken by the Merchant of this bill of lading.

15.2 The Merchant shall be liable for and shall indemnify the Carrier against all loss, damage, delay, fines, attorney fees and/or expenses arising from any breach of any of the warranties in clause 14.3 or from any other cause whatsoever in connection with the Goods for which the Carrier is not responsible.

15.3 The Merchant shall comply with all regulations or requirements of customs, port and other authorities, and shall bear and pay all duties, taxes, fines, imposts, expenses or losses including, without prejudice to the generality of the foregoing Freight for any additional Carriage undertaken, incurred or suffered by reason thereof, or by reason of any illegal, incorrect or insufficient declaration or by reason of any illegal, incorrect or insufficient declaration, marking, numbering or addressing of the Goods, and shall indemnify the Carrier in respect thereof.

15.4 If Containers supplied by or on behalf of the Carrier are unpacked by or for the Merchant, the Merchant is responsible for returning the empty Containers, with interiors clean, odor free and in the same conditions as received, to the point or place designated by the Carrier, within the time prescribed.

Should a Containers not be returned in the condition required and/or within the time prescribed in the Tariff, the Merchant shall be liable for any detention, loss or expense incurred as a result thereof.

15.5 Containers released into the care of the Merchant for packing, unpacking or any other purpose whatsoever are at the sole risk of the Merchant until redelivered to the Carrier. The Merchant shall indemnify the Carrier for all loss of and/or damage and/or delay to such Containers. Merchants are deemed to be aware of the dimensions and capacity of any Containers released to them.

16. FREIGHT, EXPENSES, AND FEES

16.1 Full Freight shall be payable based on particulars furnished by or on behalf of the Shipper. The Carrier may at any time open the Goods or Container(s) and, if the Shipper's particulars are incorrect the Merchant and the Goods shall be liable for the correct Freight and any expenses incurred in examining, weighing, measuring, or valuing the Goods.

16.2 Full Freight shall be considered completely earned on receipt of the Goods by the Carrier and shall be paid and is non returnable in any event.

16.3 All sums payable to the Carrier are due on demand and shall be paid in full in United States currency or at the Carrier's option, in its equivalent in the currency of the Port of Loading or of Discharge or the Place of Receipt or of Delivery or as specified in the Carrier's Tariff.

16.4 The Merchant's attention is drawn to the stipulations concerning currency in which the Freight is to be paid, rate of exchange, devaluation, additional insurance premium and other contingencies relative to Freight in the applicable Tariff. In the event of any discrepancy between Freight (incl. charges etc) items in the bill of lading and any Carrier invoices, the later shall prevail.

16.5 All Freight shall be paid without any set-off, counter-claim, deduction or stay of execution at latest before delivery of the Goods.

16.6 If the Merchant fails to pay the Freight when due he shall be liable also for payment of service fee, interest due on any outstanding and/or overdue sum, reasonable attorney fees and expenses incurred in collecting any sums due to the Carrier. Payment of Freight and charges to a freight forwarder, broker or anyone other than the Carrier or its authorized agent, shall not be deemed payment to the Carrier and shall be made at the Merchant's sole risk.

16.7 Despite the acceptance by the Carrier of instructions to collect Freight, duties, fees, demurrage/detention and costs and expenses from the shipper or consignee or any other Person, then, in the absence of evidence of payment (for whatever reason) by such shipper or consignee or other Person when due, the Merchant shall remain responsible for and for the payment of such Freight, duties, fees, demurrage/detention and costs and expenses on receipts of evidence of demand within meaning of clause 16.3.

16.8 If the Carrier, at its sole discretion, grants credit on any sums payable to the Carrier, the terms and conditions applicable to any credit (Terms of payment) are available from the Carrier or his authorized agents. The applicable Terms of payment will automatically apply to any granting of credit by the Carrier, unless otherwise agreed by the Carrier.

16.9 If the Merchant fails to collect the cargo at destination within 30 days of arrival, the Carrier is authorized to sell, abandon, or otherwise dispose of the Goods however it sees fit. Said sale, abandonment or other disposal will not relieve the Merchant from the obligation to pay all charges accrued against the Goods.

17. LIEN

The Carrier shall have a lien on the Goods and any documents relating thereto for all sums payable to the Carrier under this contract and for general average contributions to whomsoever are due. The Carrier shall also have a lien against the Merchant on these or any other Goods shipped by Merchant via the Carrier and any document relating thereto for all sums due by the Merchant to the Carrier under any other contract whether or not related to this Carriage. The Carrier may exercise its lien at any time and any place at its sole discretion, whether the contractual Carriage is completed or not. In any event any lien shall extend to cover the cost of recovering any sums due and for that purpose the Carrier shall have the right to sell the Goods by public auction or private treaty, without notice to the Merchant. The Carrier's lien shall survive delivery of the Goods.

18. OPTIONAL STOWAGE, DECK CARGO, AND LIVESTOCK

18.1 The Goods may be packed by the Carrier in Containers and consolidated with other goods in Containers.

18.2 Goods, whether packed in Containers or not, may be carried on deck or under deck without notice to the Merchant unless on the reverse side hereof it is specifically stipulated that the Containers or Goods

will be carried under deck. If carried on deck, the Carrier shall not be required to note, mark, or stamp on the bill of lading any statement of such on deck carriage. Save as provided in clause 18.3, such Goods (except livestock) carried on or under deck and whether or not stated to be carried on deck shall participate in general average and shall be deemed to be within the definition of goods for the purpose of the Hague Rules or US COGSA and shall be carried subject to such Rules or Act, whichever is applicable.

18.3 Goods (not being Goods stowed in Containers other than flats or pallets) which are stated herein to be carried on deck and livestock, whether or not carried on deck, are carried without responsibility on the part of the Carrier for loss or damage of whatsoever nature or delay arising during the Carriage whether caused by unseaworthiness or negligence or any other cause whatsoever and neither the Hague Rules nor US COGSA shall apply.

19. METHODS AND ROUTES OF CARRIAGE

19.1 The Carrier may at any time and without notice to the Merchant:

- (a) use any means of transport or storage whatsoever;
- (b) transfer the Goods from one conveyance to another including transshipping or carrying the same on a vessel other than the vessel named on the reverse hereof or by any other means of transport whatsoever and even though transshipment or forwarding of the Goods may not have been contemplated or provided for herein;
- (c) unpack and remove the Goods which have been packed into a Container and forward them via Container or otherwise;
- (d) sail without pilots, proceed via any route, (whether or not the nearest or most direct or customary or advertised route) at any speed and proceed to, return to, and stay at any port or place whatsoever (including the Port of Loading herein provided) once or more often, and in any order in or out of the route or in a contrary direction to or beyond the Port of Discharge once or more often;
- (e) load and unload the Goods at any place or port (whether or not any such port is named on the reverse hereof as the Port of Loading or Port of Discharge) and store the Goods at any such port or place;
- (f) comply with any orders or recommendations given by any government or authority or any Person or body or purporting to act as or on behalf of such government or authority or having under the terms of the insurance on any conveyance employed by the Carrier the right to give orders or directions.

19.2 The liberties set out in clause 19.1 may be invoked by the Carrier for any purpose whatsoever whether or not connected with the Carriage of the Goods, including but not limited to loading or unloading other goods, bunkering or embarking or disembarking any person(s), undergoing repairs and/or dry docking, towing or being towed, assisting other vessels, making trial trips and adjusting instruments. Anything done or not done in accordance with clause 19.1 or any delay arising therefrom shall be deemed to be within the contractual Carriage and shall not be a deviation.

20. MATTERS AFFECTING PERFORMANCE

If at any time Carriage is or is likely to be affected by any hindrance, risk, danger, delay, difficulty or disadvantage of whatsoever kind and howsoever arising which cannot be avoided by the exercise of reasonable endeavors, (even though the circumstances giving rise to such hindrance, risk, danger, delay, difficulty or disadvantage existed at the time this contract was entered into or the Goods were received for Carriage) the Carrier may at this sole discretion and without notice to the Merchant and whether or not the Carriage is commenced either:

- (a) Carry the Goods to the contracted Port of Discharge or Place of Delivery, whichever is applicable, by an alternative route to that indicated in this bill of lading or that which is usual for Goods consigned to that Port of Discharge or Place of Delivery. If the Carrier elects to invoke the terms of this clause, the, notwithstanding the provisions of paragraph 19 hereof, the Carrier shall be entitled to charge such additional Freight as the Carrier may determine; or
- (b) Suspend the Carriage of the Goods and store them ashore or afloat upon the Terms and Conditions of this bill of lading and Endeavour to forward them as soon as possible, but the Carrier makes no representations as to the maximum period of suspension. If the Carrier elects to invoke the terms of this clause, then, notwithstanding the provisions of clause 19 hereof, he shall be entitled to charge such additional Freight and Costs as the Carrier may determine; or
- (c) Abandon the Goods and place them at the Merchant's disposal at any place or port which the Carrier may deem safe and convenient, whereupon the responsibility of the Carrier in respect of such Goods shall cease. The Carrier shall nevertheless be entitled to full Freight on the Goods received for the Carriage, and the Merchant shall pay any additional costs incurred by reason of the abandonment of the

Goods. If the Carrier elects to use an alternative route under clause 20(a) or to suspend the Carriage under clause 20(b) this shall not prejudice his right subsequently to abandon the Carriage.

21. DANGEROUS GOODS

21.1 No Goods which are or which may become of a dangerous, noxious, hazardous, flammable, or damaging nature (including radioactive material), or which are or may become liable to damage any Persons or property, and whether or not so listed in any official or unofficial, international or national code, convention, listing or table shall be tendered to the Carrier for Carriage without previously giving written notice of their nature, character, name, label and classification (if applicable) to the Carrier and obtaining his consent in writing and without distinctly marking the Goods and the Container or other covering on the outside so as to indicate the nature and character of any such Goods and so as to comply with any applicable laws, regulations, or requirements. If any such Goods are delivered to the Carrier without obtaining his consent and/or such marking, or if in the opinion of the Carrier the Goods are or are liable to become of a dangerous, noxious, hazardous, flammable or damaging nature they may at any time or place be unloaded, destroyed, disposed of, abandoned or rendered harmless without compensation to the Merchant and without prejudice to the Carrier's right to Freight and, the Carrier shall be under no liability to make any general average contribution in respect of such Goods.

21.2 The Merchant warrants that such Goods are packed in a manner adequate to withstand the risks of Carriage having regard to their nature and in compliance with all laws, regulations, or requirements which may be applicable during the Carriage.

21.3 The Merchant shall indemnify the Carrier against all claims, liabilities, loss, damage, delay, costs, fines and/or expenses arising in consequence of the Carriage of such Goods, and/or arising from breach of any of the warranties in clause 21.2 including any steps taken by the Carrier pursuant to clause 21.1 whether or not the Merchant was aware of the nature of such Goods.

21.4 Nothing contained in this clause shall deprive the Carrier of any of his rights provided for elsewhere.

22. NOTIFICATION AND DELIVERY

22.1 Any mention in this bill of lading of parties to be notified of the arrival of the Goods is solely for information of the Carrier. Failure to give such notification shall not involve the Carrier in any liability nor relieve the Merchant of any obligation hereunder.

22.2 The Merchant shall take delivery of the Goods within the time provided for in the Carrier's applicable Tariff. If the Merchant fails to do so, the Carrier may without notice unpack the Goods if packed in containers and/or store the Goods ashore, afloat, in the open or under cover at the sole risk of the Merchant. Such storage shall constitute due delivery hereunder, and thereupon all liability whatsoever of the Carrier in respect of the Goods or that part thereof shall cease and the costs of such storage shall forthwith upon demand be paid by the Merchant to the Carrier.

22.3 If the Goods are unclaimed within a reasonable time or whenever in the Carrier's opinion the Goods are likely to deteriorate, decay or become worthless, or incur charges whether for storage or otherwise in excess of their value, the Carrier may at his discretion and without prejudice to any other rights which he may have against the Merchant without notice and without any responsibility attaching to him sell, abandon, or otherwise dispose of the Goods at the sole risk and expense of the Merchant and apply any proceeds of sale in reduction of the sums due to the Carrier from the Merchant in respect of this bill of lading.

22.4 Refusal by the Merchant to take delivery of the Goods in accordance with the terms of this clause and/or to mitigate any loss or damage thereto shall constitute a waiver by the Merchant to the Carrier of any claim whatsoever relating to the Goods or the carriage thereof.

22.5 The Carrier may in his absolute discretion receive the Goods as Full Container Load and deliver them as less than Full Container Load and/or as break bulk cargo and/or deliver the Goods to more than one receiver. In such event the Carrier shall not be liable for any shortage, loss, damage or discrepancies of the Goods, which are found upon the unpacking of the Container.

23. GENERAL AVERAGE AND SALVAGE

23.1 General average is to be adjusted at any port or place at the Carrier's option and to be settled according to the York-Antwerp Rules 1994, this covering all Goods carried on or under deck. General average on a vessel not operated by the Carrier shall be adjusted according to the requirements of the operator of that vessel.

23.2 Such security including a cash deposit as the Carrier may deem sufficient to cover the estimated contribution of the Goods and any salvage and special charges thereon, shall, if required, be submitted to

the Carrier prior to delivery of the Goods. The Carrier shall be under no obligation to exercise any lien for general average contribution due to the Merchant.

23.3 Should the Carrier in its own discretion choose to pose general average and/or salvage security due from cargo interests, the Merchant hereby assigns to the Carrier all his rights in respect of the general average and/or salvage.

23.4 If a salving ship is owned or operated by the Carrier, salvage shall be paid for as fully as if the said salving ship belonged to strangers.

24. VARIATION OF THE CONTRACT

No servant or agent of the Carrier shall have the power to waive or vary any Terms and Conditions of this bill of lading unless such waiver or variation is in writing and specifically authorized or ratified in writing by the Carrier.

25. LAW AND JURISDICTION

Any dispute arising out of or in any way relating to this bill of lading shall be governed by U.S. law, and the **United States Federal Court of the Southern District of Florida** sitting in Miami-Dade County is to have exclusive jurisdiction to hear all disputes in respect thereof. Alternatively, at the Carrier's sole discretion, the Carrier may commence proceedings against the Merchant at a competent court of a place of business of the Merchant.

Exhibit F

Subject: MBL INSTRUCTIONS...RE: DOC REQUEST BK SSL#: 560323561 ECI#: 04-439024
From: Gaby / Amoyline <gaby@amoyline.com>
Date: 5/24/2013 2:35 PM
To: LAFCLDocs <lafcldocs@econocaribe.com>, "KRYSTAL@AMOYLINE.COM"
<KRYSTAL@AMOYLINE.COM>
CC: 'Melissa / Amoy Line' <melissa@amoyline.com>

Hello,

Please see below MBL instructions, and please note we would like our agent in China as the direct consignment to the carrier MBL

Booking#: 560323561

MBL Shipper:

AMOY INTERNATIONAL
14145 PROCTOR AVE, SUITE 14
CITY OF INDUSTRY CA 91746

ULTIMATE MBL (CARRIERS MBL) Consignee:

VICTORY MARITIME SERVICES (CHINA) LTD
TIANJIN BRANCH
504, TOWER C, CITY CENTER, XI KANG ROAD, HE PING DISTRICT, TIANJIN, CHINA
TEL: 86-22-23336411/33/55 FAX: 86-22-23336400
CTC:Ms Liu Hui.

From OAKLAND, California to XINGANG, China

Commodity:
AUTO PARTS

Container#/Seal#:
PONU1750788/2300720 - 25PKGS/22000KGS/50CBM
MSKU6129259/2300719 - 25PKGS/22000KGS/50CBM
PONU1877619/2300718 - 25PKGS/22000KGS/50CBM
MRKU0232720/2300717 - 25PKGS/22000KGS/50CBM

AES ITN : X20130524032027
BL: TELEX
Freight: PRE-PAID

Best Regards,
Gaby

Amoy International LLC

Ph: (626) 855-3077 / Fax: (626) 855-3078

From: LAFCLDocs [mailto:lafcldocs@econocaribe.com]
Sent: Friday, May 24, 2013 10:05 AM
To: KRYSTAL@AMOYLINE.COM; 'Gaby / Amoyline'
Subject: DOC REQUEST BK SSL#: 560323561 ECI#: 04-439024
Importance: High

Hello,

This is just a friendly reminder, that your documents were due 05/22/2013.

Please send them to us at your earliest to avoid booking from rolling.

Send all docs to LAFCLDOCS@econocaribe.com or Fax 310.765.6274

Kind Regards,

Olivia Zamarripa

FCL Documentation

ECONOCARIBE CONSOLIDATORS, INC. – Los Angeles

637 E. Albertoni Suite# 104

Carson CA 90746

E-Mail: lafcldocs@econocaribe.com AOL IM: eciozamarripa

 cid:image001.png@01CDAB96.2BE00C40

Exhibit G

**MAERSK LINE****NON-NEGOTIABLE WAYBILL**

SCAC MAEU

B/L No. 560323561

Shipper
ECONOCARIBE CONSOLIDATORS
637 E. ALBERTONI ST.,SUITE 104
CARSON, CA 90746
PHONE 1-310-817-2746

Booking No.
560323561

Export references
ECI REF.#04-439024

Svc Contract
646516

Consignee
VICTORY MARITIME SERVICES (CHINA JLTD
504 CTOWER CCCITY CENTER CXI KANG ROAD
HE PING DISTRICT CTIANJIN CCHINA
TEL F86-22-23336411/33/55
FAX F86-22-23336400
CTC:MS LIU HUI.

This contract is subject to the terms and conditions, including the law & jurisdiction clause and limitation of liability & declared value clauses, of the current Maersk Line Bill of Lading (available from the carrier, its agents and at www.maerskline.com), which are applicable with logical amendments (mutatis mutandis). To the extent necessary to enable the Consignee to sue and to be sued under this contract, the Shipper on entering into this contract does so on his own behalf and as agent for and on behalf of the Consignee and warrants the he has the authority to do so. The shipper shall be entitled to change the Consignee at any time before delivery of the goods provided he gives the Carrier reasonable notice in writing.

Delivery will be made to the Consignee or his authorised agent on production of reasonable proof of identity (and, in the case of an agent, reasonable proof of authority) without production of this waybill. The Carrier shall be under no liability whatsoever for misdelivery unless caused by the Carrier's negligence.

Onward inland routing (Not part of Carriage as defined in clause 1. For account and risk of Merchant)

Vessel
CMA CGM VIVALDI

Voyage No.
530W

Place of Receipt. Applicable only when document used as Multimodal Waybill

Port of Loading
OAKLAND,CA,US

Port of Discharge
Xingang, China

Place of Delivery. Applicable only when document used as Multimodal Transport B/L. (see clause 1)

PARTICULARS FURNISHED BY SHIPPER

Kind of Packages; Description of goods; Marks and Numbers; Container No./Seal No.

Weight
88000.000 KGS

Measurement
200.000 CBM

4 containers said to contain 100 PACKAGES

AUTO PARTS
AES ITN: X20130524032027

XINGANG/CHINA

PONU1750788 40 DRY 8'6 25 PACKAGES 22000.000 KGS 50.000 CBM

Shipper Seal : 2300720

PONU1877617 40 DRY 8'6 25 PACKAGES 22000.000 KGS 50.000 CBM

Shipper Seal : 2300718

MRKU0232720 40 DRY 8'6 25 PACKAGES 22000.000 KGS 50.000 CBM

Shipper Seal : 2300717

MSKU6129259 40 DRY 8'6 25 PACKAGES 22000.000 KGS 50.000 CBM

Shipper Seal : 2300719

THESE COMMODITIES, TECHNOLOGY, OR SOFTWARE WERE EXPORTED FROM THE UNITED STATES IN ACCORDANCE WITH THE EXPORT ADMINISTRATION REGULATIONS. DIVERSION CONTRARY TO U.S.LAW PROHIBITED.

SHIPPER'S LOAD, STOW, WEIGHT AND COUNT

Above particulars as declared by Shipper, but, without responsibility of or representation by Carrier.

Freight & Charges	Rate	Unit	Currency	Prepaid	Collect
Basic Ocean Freight	-50.00	Per Container	USD	-200.00	
Documentation Fee- Destination	400.00	Per Bill of Lading	CNY		400.00
Standard Bunker Adjustment	600.00	Per Container	USD	2400.00	
Total CNY			CNY		400.00
Total USD			USD	2200.00	

Carrier's Receipt. Total number of containers or packages received by Carrier.
4 containers

Place of Issue of Waybill
Chennai

Shipped, as far as ascertained by reasonable means of checking, in apparent good order and condition unless otherwise stated herein the total number or quantity of Containers or other packages or units indicated in the box opposite entitled "Carrier's Receipt"

Shipped on Board Date (Local Time)

Date Issue of Waybill

Declared Value Charges (see clause 7.3 of the Maersk Line Bill of Lading) for Declared Value of US\$

Forwarder

Signed for the Carrier A.P. Møller - Maersk A/S trading as Maersk Line

This transport document has one or more numbered pages

As Agent(s) for the Carrier

Exhibit H

From: Ariel Martinez [<mailto:amartinez@econocaribe.com>]
Sent: Tuesday, July 09, 2013 8:58 AM
To: Melissa / Amoyline; John Kamada
Cc: Krystal / Amoyline
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Hello Melissa,

Please see the response from Maersk overseas office below:

On 4th July we have contacted with cnee :VICTORY MARITIME SERVICES(022-23336331 ms liu). Customer said that it was not there shipment and would help to check first and inform us.

On 8th July we contacted with VICTORY MARITIME SERVICES(022-23336331 ms liu) again, she said that it was actually not their booking and their overseas company also no respond about the shipment. They have no idea about it.

Pls urgently inform shipper accordingly and advise if they need to find new cnee to help them return issue. Any update pls inform us urgently.

Detention by today is 18360 RMB and will daily increase as below tariff.

Pls make sure shipper as cargo owner be informed the longstanding. They need to push CNEE arrange cargo delivery ASAP.

PS: RKEM gate-out just means cntr shift from terminal to depot to avoid terminal congestion.

Equipment Type 箱型		Equipment Freetime & Tariff (per day per container) 标准免箱期及收费标准 (RMB / 天 / 箱)			
		1-7 days	8-15 days	16-20 days	21 days onwards
Dry 干箱	20' Dry	Free (免费)	70	180	360
	40' Dry	Free (免费)	120	330	660
	40' High	Free (免费)	130	360	720
	45' High	Free (免费)	180	420	840
		1-7 days	8-15 days	16 days onwards	
Special 特种箱	20' Special	Free (免费)	210	420	
	40' Special	Free (免费)	280	560	
		1-4 days	5-10 days	11-20 days	21 days onwards
Reefer 冷藏箱	20' REEFER	Free (免费)	190	380	760
	40' REEFER	Free (免费)	380	760	1500

Thanks and best regards

Eggy Xu / Ms. 许春颖

Maersk (China) Shipping Co., Ltd Qingdao Branch

马士基（中国）航运有限公司青岛分公司

Please comment, thanks.

Regards,

Ariel Martinez

Account Executive

Econocaribe Consolidators, Inc.

637 EAST ALBERTONI ST. #104

CARSON CA 90746

Cell 310.413.6707

Tel 310.817.2746 Fax 310.817.2751

Email: amartinez@econocaribe.com



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****ASK ME ABOUT OUR LA "EXPORT" CFS CHANGE TO AZ WAREHOUSE, EFFECTIVE JUNE 17, 2013****

AZ CFS-2220 E. Carson Street, Long Beach, CA 90810

Exhibit I

Maersk Line Inc.
790 N.W.107th Ave Suite 110
Miami, Florida 33172
Tel: (877)761-7930
George.Amador@Maersk.com<<mailto:George.Amador@Maersk.com>>
www.maerskline.com<<http://www.maerskline.com>>
From: John Kamada [<mailto:jkamada@econocaribe.com>]
Sent: Wednesday, July 17, 2013 10:03
To: Amador, George; Ariel Martinez
Subject: RE: Booking 560323561

Hi George,
If I read the below correctly, we only have to re-import if the cargo is found as prohibited. It should not be. We should be able to abandon, auction and or destroy cargo.
Is there more to the e-mail that they sent from overseas? I have been involved in a few cases of this nature and we have always been able to abandon at destination.

Please let me know and thanks.

John

From: George.Amador@maersk.com<<mailto:George.Amador@maersk.com>>
[<mailto:George.Amador@maersk.com>]
Sent: Wednesday, July 17, 2013 6:59 AM
To: Ariel Martinez
Cc: John Kamada
Subject: RE: Booking 560323561

Hi Ariel, Please see below from overseas.

As the cargo owner they absolutely can't abandon the containers, now they must find new buyer at destination or arrange re-export. The detention charge till today is 39480 RMB. Please update below information to shipper. We suggest to them to take quick action to arrange their cargos, even if cargo will be returned to origin, auctioned or destroyed in the future due to no one pick up containers. All the fee will be charged to the shipper. If you need any help please contact us.

According to China Law, When shipment discharge goes past 90days without pick up by CNEE, it will be considered as abandon cargo and can be disposed by China Customs.
- Due to the cargo nature, China customs will need assistance from the China Inspection and Quarantine Authority to check the cargo first. Only with the result of the inspection, can customs decide what to do with the cargo. We heard usually there are 3 possible ways of finally handling the cargo:
1. Order return to origin (if cargo is found as prohibited or restricted to import to China).
2. Auction (if cargo is found allowed to import to China).
3. Destroy (if cargo is found not in good condition for return and auction).

Brgds

Brgds

George Amador
Care Business Partner
Maersk Line Inc.
790 N.W.107th Ave Suite 110
Miami, Florida 33172
Tel: (877)761-7930
George.Amador@Maersk.com<<mailto:George.Amador@Maersk.com>>
www.maerskline.com<<http://www.maerskline.com>>
From: Ariel Martinez [<mailto:amartinez@econocaribe.com>]
Sent: Tuesday, July 16, 2013 11:08
To: Amador, George
Cc: John Kamada
Subject: RE: Booking 560323561
Importance: High

****reminder****

From: Ariel Martinez
Sent: Monday, July 15, 2013 9:21 AM
To: 'George.Amador@maersk.com'
Cc: John Kamada
(jkamada@econocaribe.com<<mailto:jkamada@econocaribe.com>>)
Subject: RE: Booking 560323561
Importance: High

Good morning George,

Have you heard back from your overseas office? Please confirm the procedure/charges for the abandonment.

Regards,
Ariel Martinez

Account Executive
Econocaribe Consolidators, Inc.
637 EAST ALBERTONI ST. #104
CARSON CA 90746
Cell 310.413.6707
Tel 310.817.2746 Fax 310.817.2751
Email: amartinez@econocaribe.com<<mailto:amartinez@econocaribe.com>>
[[cid:image001.png@01CDAB96.2BE00C40](#)]

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****ASK ME ABOUT OUR LA "EXPORT" CFS CHANGE TO AZ WAREHOUSE, EFFECTIVE JUNE 17, 2013**** AZ CFS-2220 E. Carson Street, Long Beach, CA 90810

From: Ariel Martinez
Sent: Friday, July 12, 2013 1:16 PM

Exhibit J



中华人民共和国环境保护部

Ministry of Environmental Protection of the People's Republic of China

政府信息公开

索引号: 000014672/2011-00470

发布单位: 环境保护部

商 务 部

发展改革委

海关总署

质检总局

名 称: 固体废物进口管理办法

文 号: 部令 第12号

分类: 环境管理业务信息\污染防治

生成日期: 2011年04月08日

主 题 词: 环保 法规 固体废物 进口 令

环境保护部
商 务 部
发展改革委
海关总署
质检总局

令

部令 第12号

固体废物进口管理办法

根据《中华人民共和国固体废物污染环境防治法》和有关法律、行政法规，制定《固体废物进口管理办法》。现予公布，自2011年8月1日起施行。

环境保护部部长

周生贤

商务部部长

陈德铭

发展改革委主任

张 平

海关总署署长

盛光祖

质检总局局长

支树平

二〇一一年四月八日

主题词: 环保 法规 固体废物 进口 令

固体废物进口管理办法

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第一章 总 则

第一条 为了规范固体废物进口环境管理，防止进口固体废物污染环境，根据《中华人民共和国固体废物污染环境防治法》和有关法律、行政法规，制定本办法。

第二条 本办法所称固体废物，是指在生产、生活和其他活动中产生的丧失原有利用价值或者虽未丧失利用价值但被抛弃或者放弃的固态、半固态、液态和置于容器中的气态的物品、物质以及法律、行政法规规定纳入固体废物管理的物品、物质。

本办法所称固体废物进口，是指将中华人民共和国境外的固体废物运入中华人民共和国境内的活动。

第三条 本办法适用于以任何方式进口固体废物的活动。

通过赠送、出口退运进境、提供样品等方式将固体废物运入中华人民共和国境内的，进境修理产生的未复运出境固体废物以及出境修理或者出料加工中产生的复运进境固体废物的，除另有规定外，也适用本办法。

第四条 禁止转让固体废物进口相关许可证。

本办法所称转让固体废物进口相关许可证，是指：

- (一) 出售或者出租、出借固体废物进口相关许可证；
- (二) 使用购买或者租用、借用的固体废物进口相关许可证进口固体废物；
- (三) 将进口的固体废物全部或者部分转让给固体废物进口相关许可证载明的利用企业以外的单位或者个人。

第五条 禁止中华人民共和国境外的固体废物进境倾倒、堆放、处置。

禁止固体废物转口贸易。

未取得固体废物进口相关许可证的进口固体废物不得存入海关监管场所，包括保税区、出口加工区、保税物流园区、保税港区等海关特殊监管区域和保税物流中心（A/B型）、保税仓库等海关保税监管场所（以下简称“海关特殊监管区域和场所”）。

除另有规定外，进口固体废物不得办理转关手续（废纸除外）。

第六条 国务院环境保护行政主管部门对全国固体废物进口环境管理工作实施统一监督管理。国务院商务主管部门、国务院经济综合宏观调控部门、海关总署和国务院质量监督检验检疫部门在各自的职责范围内负责固体废物进口相关管理工作。

县级以上地方环境保护行政主管部门对本行政区域内固体废物进口环境管理工作实施监督管理。各级商务主管部门、经济综合宏观调控部门、海关、出入境检验检疫部门在各自职责范围内对固体废物进口实施相关监督管理。

国务院环境保护行政主管部门会同国务院商务主管部门、国务院经济综合宏观调控部门、海关总署、国务院质量监督检验检疫部门建立固体废物进口管理工作协调机制，实行固体废物进口管理信息共享，协调处理固体废物进口及经营活动监督管理工作的重要事务。

第七条 任何单位和个人有权向各级环境保护行政主管部门、商务主管部门、经济综合宏观调控部门、海关和出入境检验检疫部门，检举违反固体废物进口监管程序和进口固体废物造成污染的行为。

第二章 一般规定

第八条 禁止进口危险废物。禁止经中华人民共和国过境转移危险废物。

禁止以热能回收为目的进口固体废物。

禁止进口不能用作原料或者不能以无害化方式利用的固体废物。

禁止进口境内产生量或者堆存量且尚未得到充分利用的固体废物。

禁止进口尚无适用国家环境保护控制标准或者相关技术规范等强制性要求的固体废物。

禁止以凭指示交货（TO ORDER）方式承运固体废物入境。

第九条 对可以弥补境内资源短缺，且根据国家经济、技术条件能够以无害化方式利用的可用作原料的固体废物，按照其加工利用过程的污染排放强度，实行限制进口和自动许可进口分类管理。

第十条 国务院环境保护行政主管部门会同国务院商务主管部门、国务院经济综合宏观调控部门、海关总署、国务院质量监督检验检疫部门制定、调整并公布禁止进口、限制进口和自动许可进口的固体废物目录。

第十一条 禁止进口列入禁止进口目录的固体废物。

进口列入限制进口或者自动许可进口目录的固体废物，必须取得固体废物进口相关许可证。

第十二条 进口固体废物应当采取防扬散、防流失、防渗漏或者其他防止污染环境的措施。

第十三条 进口固体废物的装运、申报应当符合海关规定，有关规定由海关总署另行制定。

第十四条 进口固体废物必须符合进口可用作原料的固体废物环境保护控制标准或者相关技术规范等强制性要求。经检验检疫，不符合进口可用作原料的固体废物环境保护控制标准或者相关技术规范等强制性要求的固体废物，不得进口。

第十五条 申请和审批进口固体废物，按照风险最小化原则，实行“就近口岸”报关。

第十六条 国家对进口可用作原料的固体废物的国外供货商实行注册登记制度。向中国出口可用作原料的固体废物的国外供货商，应当取得国务院质量监督检验检疫部门颁发的注册登记证书。

国家对进口可用作原料的固体废物的国内收货人实行注册登记制度。进口可用作原料的固体废物的国内收货人在签订对外贸易合同前，应当取得国务院质量监督检验检疫部门颁发的注册登记证书。

第十七条 国务院环境保护行政主管部门对加工利用进口废五金电器、废电线电缆、废电机等环境风险较大的固体废物的企业，实行定点企业资质认定管理。管理办法由国务院环境保护行政主管部门制定。

第十八条 国家鼓励限制进口的固体废物在设定的进口废物“园区管理”园区内加工利用。

进口废物“园区管理”应当符合法律、法规和国家标准要求。进口废物“园区管理”园区的建设规范和要求由国务院环境保护行政主管部门会同国务院商务主管部门、国务院经济综合宏观调控部门、海关总署、国务院质量监督检验检疫部门制定。

第十九条 出口加工区内的进口固体废物利用企业以加工贸易方式进口固体废物的，必须持有固体废物进口相关许可证。 出口加工区以外的进口固体废物利用企业以加工贸易方式进口固体废物的，必须持有商务主管部门签发的有效的《加工贸易业务批准证》、海关核发的有效的加工贸易手册（帐册）和固体废物进口相关许可证。 以加工贸易方式进口的固体废物或者加工成品因故无法出口需内销的，加工贸易企业无须再次申领固体废物进口相关许可证；未经加工的原进口固体废物仅限留作本企业自用。	
第三章 固体废物进口许可管理 第二十条 进口列入限制进口目录的固体废物，应当经国务院环境保护行政主管部门会同国务院对外贸易主管部门审查许可。进口列入自动许可进口目录的固体废物，应当依法办理自动许可手续。 第二十一条 固体废物进口相关许可证当年有效。 固体废物进口相关许可证应当在有效期内使用，无论是否使用完毕逾期均自行失效。 固体废物进口相关许可证因故在有效期内未使用完的，利用企业应当在有效期届满30日前向发证机关提出延期申请。发证机关扣除已使用的数量后，重新签发固体废物进口相关许可证，并在备注栏中注明“延期使用”和原证证号。 固体废物进口相关许可证只能延期一次，延期最长不超过60日。 第二十二条 固体废物进口相关许可证实行“一证一关”管理。一般情况下固体废物进口相关许可证为“非一批一证”制，如要实行“一批一证”，应当同时在固体废物进口相关许可证备注栏内打印“一批一证”字样。 “一证一关”指固体废物进口相关许可证只能在一个海关报关；“一批一证”指固体废物进口相关许可证在有效期内一次报关使用；“非一批一证”指固体废物进口相关许可证在有效期内可以多次报关使用，由海关逐批签注核减进口数量，最后一批进口时，允许溢装上限为固体废物进口相关许可证实际余额的3%，且不论是否仍有余额，海关将在签注后留存正本存档。 第二十三条 固体废物进口相关许可证上载明的事项发生变化的，利用企业应当按照申请程序重新申请领取固体废物进口相关许可证。 发证机关受理申请后，注销原证，并公告注销的证书编号。 第二十四条 进口固体废物审批管理所需费用，按照国家有关规定执行。	
第四章 检验检疫与海关手续 第二十五条 进口固体废物的承运人在受理承运业务时，应当要求货运委托人提供下列证明材料： （一）固体废物进口相关许可证； （二）进口可用作原料的固体废物国内收货人注册登记证书； （三）进口可用作原料的固体废物国外供货商注册登记证书； （四）进口可用作原料的固体废物装运前检验证书。 第二十六条 对进口固体废物，由国务院质量监督检验检疫部门指定的装运前检验机构实施装运前检验；检验合格的，出具装运前检验证书。 进口的固体废物运抵固体废物进口相关许可证列明的口岸后，国内收货人应当持固体废物进口相关许可证报检验检疫联、装运前检验证书以及其他必要单证，向口岸出入境检验检疫机构报检。 出入境检验检疫机构经检验检疫，符合国家环境保护控制标准或者相关技术规范等强制性要求的，出具《入境货物通关单》，并备注“经初步检验检疫，未发现不符合国家环境保护控制标准要求的物质”；对不符合国家环境保护控制标准或者相关技术规范等强制性要求的，出具检验检疫处理通知书，并及时通知口岸海关和口岸所在地省、自治区、直辖市环境保护行政主管部门。 口岸所在地省、自治区、直辖市环境保护行政主管部门收到进口固体废物检验检疫不合格的通知后，应当及时通知利用企业所在地省、自治区、直辖市环境保护行政主管部门和国务院环境保护行政主管部门。 对于检验结果不服的，申请人应当根据进出口商品复验工作的有关规定申请复验。国务院质量监督检验检疫部门或者出入境检验检疫机构可以根据检验工作的实际情况，会同同级环境保护行政主管部门共同实施复验工作。 第二十七条 除另有规定外，对限制进口类或者自动许可进口类可用作原料的固体废物，应当持固体废物进口相关许可证和出入境检验检疫机构出具的《入境货物通关单》等有关单证向海关办理进口验放手续。 第二十八条 进口者对海关将其所进口的货物纳入固体废物管理范围不服的，可以依法申请行政复议，也可以向人民法院提起行政诉讼。 海关怀疑进口货物的收货人申报的进口货物为固体废物的，可以要求收货人送口岸检验检疫部门进行固体废物属性检验，必要时，海关可以直接送口岸检验检疫部门进行固体废物属性检验，并按照检验结果处理。 口岸检验检疫部门应当出具检验结果，并注明是否属于固体废物。 海关或者收货人对口岸所在地检验检疫部门的检验结论有异议的，国务院环境保护行政主管部门会同海关总署、国务院质量监督检验检疫部门指定专门鉴别机构对进口的货物、物品是否属于固体废物和固体废物类别进行鉴别。	

《固体废物鉴别导则》及有关鉴别程序和办法由国务院环境保护行政主管部门会同海关总署、国务院质量监督检验检疫部门制定。 检验或者鉴别期间，海关不接受企业担保放行的申请。对货物在检验或者鉴别期间产生的相关费用以及损失，由进口货物的收货人自行承担。 本条所涉进口固体废物的鉴别，应当以《固体废物鉴别导则》为依据。 第二十九条 将境外的固体废物进境倾倒、堆放、处置的，进口属于禁止进口的固体废物或者未经许可擅自进口固体废物的，以及检验不合格的进口固体废物，由口岸海关依法责令进口者或者承运人在规定的期限内将有关固体废物原状退运至原出口国，进口者或者承运人承担相应责任和费用，并不免除其办理海关手续的义务，进口者或者承运人不得放弃有关固体废物。 收货人无法确认的进境固体废物，由承运人向海关提出退运申请或者可以由海关依法责令承运人退运。承运人承担相应责任和费用，并不免除其办理海关手续的义务。 第三十条 对当事人拒不退运或者超过3个月不退运出境的固体废物，口岸海关会同口岸出入境检验检疫机构和口岸所在地环境保护行政主管部门对进口者或者承运人采取强制措施予以退运。 第三十一条 对确属无法退运出境或者海关决定不予退运的固体废物，经进口者向口岸海关申请（进口者不明时由承运人或者负有连带责任的第三人申请），参考就近原则，由海关以拍卖或者委托方式移交省、自治区、直辖市环境保护行政主管部门认定的具有无害化利用或者处置能力的单位进行综合利用或者无害化处置，相关滞港费用和处置费用由进口者承担，进口者不明的由承运人承担。 对委托综合利用或者无害化处置扣除处理费用后产生的收益，应当由具有无害化利用或者处置能力的单位交由海关上缴国库。各级海关未经批准，不得拍卖国家禁止进口的固体废物。具体管理办法由海关总署会同国务院环境保护行政主管部门另行制定。 第三十二条 海关应当将退运等后续处理情况通报出入境检验检疫机构和口岸所在地省、自治区、直辖市环境保护行政主管部门。 口岸所在地省、自治区、直辖市环境保护行政主管部门应当通知进口固体废物利用企业所在地省、自治区、直辖市环境保护行政主管部门和国务院环境保护行政主管部门。 出入境检验检疫机构和环境保护行政主管部门应当根据具体情况对有关单位做出处理。 第五章 监督管理 第三十三条 进口的固体废物必须全部由固体废物进口相关许可证载明的利用企业作为原料利用。 第三十四条 进口固体废物利用企业应当以环境无害化方式对进口的固体废物进行加工利用。 由海关以拍卖或者委托方式移交处理的进口固体废物的利用或者处置单位，必须对所承担的进口固体废物全部进行综合利用或者无害化处置。 第三十五条 进口固体废物利用企业应当建立经营情况记录簿，如实记载每批进口固体废物的来源、种类、重量或者数量、去向、接收、拆解、利用、贮存的时间，运输者的名称和联系方式，进口固体废物加工利用后的残余物种类、重量或者数量、去向等情况。经营记录簿及相关单据、影像资料等原始凭证应当至少保存5年。 进口固体废物利用企业应当对污染物排放进行日常定期监测。监测报告应当至少保存5年。 进口固体废物利用企业应当按照国务院环境保护行政主管部门的规定，定期向所在地省、自治区、直辖市环境保护行政主管部门报告进口固体废物经营情况和环境监测情况。省、自治区、直辖市环境保护行政主管部门汇总后报国务院环境保护行政主管部门。 固体废物的进口者、代理商、承运人等其他经营单位，应当记录所代理的进口固体废物的来源、种类、重量或者数量、去向等情况，并接受有关部门的监督检查。记录资料及相关单据、影像资料等原始凭证应当至少保存3年。 第三十六条 省、自治区、直辖市环境保护行政主管部门应当组织对进口固体废物利用企业进行实地检查和监督性监测，发现有下列情形之一的，应当在5个工作日内报知国务院环境保护行政主管部门： （一）隐瞒有关情况或者提供虚假材料申请固体废物进口相关许可证或者转让固体废物进口相关许可证； （二）超过国家或者地方规定的污染物排放标准，或者超过总量控制指标排放污染物； （三）对进口固体废物加工利用后的残余物未进行无害化利用或者处置； （四）未按规定报告进口固体废物经营情况和环境监测情况，或者在报告时弄虚作假。 国务院环境保护行政主管部门和省、自治区、直辖市环境保护行政主管部门应当将有关情况记录存档，作为审批固体废物进口相关许可证的依据。 各级环境保护行政主管部门、商务主管部门、经济综合宏观调控部门、海关、出入境检验检疫部门，有权依据各自的职责对与进口固体废物有关的单位进行监督检查。 被检查的单位应当如实反映情况，提供必要的材料。检查机关应当为被检查的单位保守技术秘密和业务秘密。	
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检查机关进行现场检查时,可以采取现场监测、采集样品、查阅或者复制相关资料等措施。

检查人员进行现场检查,应当出示证件。

第六章 海关特殊监管区域和场所的特别规定

第三十七条 固体废物从境外进入海关特殊监管区域和场所时,有关单位应当申领固体废物进口相关许可证,并申请检验检疫。固体废物从海关特殊监管区域和场所进口到境内区外或者在海关特殊监管区域和场所之间进出的,无需办理固体废物进口相关许可证。

第三十八条 海关特殊监管区域和场所内单位不得以转口货物为名存放进口固体废物。

第三十九条 海关特殊监管区域和场所内单位产生的未复运出境的残次品、废品、边角料、受灾货物等,如属于限制进口或者自动许可进口的固体废物,其在境内与海关特殊监管区域和场所之间进出,或者在海关特殊监管区域和场所之间进出,免于提交固体废物进口相关许可证。出入境检验检疫机构不实施检验。

第四十条 海关特殊监管区域和场所内单位产生的未复运出境的残次品、废品、边角料、受灾货物等,如属于禁止进口的固体废物,需出区进行利用或者处置的,应当由产生单位或者收集单位向海关特殊监管区域和场所行政管理部门和所在地设区的市级环境保护行政主管部门提出申请,并提交如下申请材料:

(一)转移固体废物出区申请书;

(二)申请单位和接收单位签订的合同;

(三)接收单位的经年检合格的营业执照;

(四)拟转移的区内固体废物的产生过程及工艺、成分分析报告、物理化学性质登记表;

(五)接收单位利用或者处置废物方式的说明,包括废物利用或者处置设施的地点、类型、处理能力以及利用或者处置过程中产生的废气、废水、废渣的处理方法等的介绍资料;

(六)证明接收单位能对区内固体废物以环境无害化方式进行利用或者处置的材料;出区废物是危险废物的,须提供接收单位所持的《危险废物经营许可证》复印件,并加盖接收单位印章。

第四十一条 海关特殊监管区域和场所行政管理部门和所在地设区的市级环境保护行政主管部门受理出区申请后,作出准予或者不准予出区的决定,批准文件有效期1年。

出入境检验检疫机构凭海关特殊监管区域和场所行政管理部门和所在地设区的市级环境保护行政主管部门批准文件办理通关单,并对固体废物免于实施检验。海关凭海关特殊监管区域和场所行政管理部门和所在地设区的市级环境保护行政主管部门批准文件按规定办理有关手续。

第四十二条 海关特殊监管区域和场所内单位产生的固体废物,出区跨省转移、贮存、处置的,须按照《中华人民共和国固体废物污染环境防治法》第二十三条的规定向有关省、自治区、直辖市环境保护行政主管部门提出申请。

海关特殊监管区域和场所内单位产生的固体废物属于危险废物或者废弃电器电子产品的,出区时须依法执行危险废物管理或者废弃电器电子产品管理的有关制度。

第七章 罚 则

第四十三条 违反本办法规定,将中华人民共和国境外的固体废物进境倾倒、堆放、处置,进口属于禁止进口的固体废物或者未经许可擅自进口限制进口的固体废物,或者以原料利用为名进口不能用作原料的固体废物的,由海关依据《中华人民共和国固体废物污染环境防治法》第七十八条的规定追究法律责任,并可以由发证机关撤销其固体废物进口相关许可证。

违反本办法规定,以进口固体废物名义经中华人民共和国过境转移危险废物的,由海关依据《中华人民共和国固体废物污染环境防治法》第七十九条的规定追究法律责任,并可以由发证机关撤销其固体废物进口相关许可证。

违反本办法规定,走私进口固体废物的,由海关按照有关法律、行政法规的规定进行处罚;构成犯罪的,依法追究刑事责任。

第四十四条 对已经非法入境的固体废物,按照《中华人民共和国固体废物污染环境防治法》第八十条的规定进行处理。

第四十五条 违反本办法规定,转让固体废物进口相关许可证的,由发证机关撤销其固体废物进口相关许可证;构成犯罪的,依法追究刑事责任。

第四十六条 以欺骗、贿赂等不正当手段取得固体废物进口相关许可证的,依据《中华人民共和国行政许可法》的规定,由发证机关撤销其固体废物进口相关许可证;构成犯罪的,依法追究刑事责任。

第四十七条 违反本办法规定,对进口固体废物加工利用后的残余物未进行无害化利用或者处置的,由所在地县级以上环境保护行政主管部门根据《中华人民共和国固体废物污染环境防治法》第六十八条第(二)项的规定责令停止违法行为,限期改正,并处1万元以上10万元以下的罚款;逾期拒不改正的,可以由发证机关撤销其固体废物进口相关许可证。造成污染环境事故的,按照《固体废物污染环境防治法》第八十二条的规定办理。

第四十八条 违反本办法规定,未执行经营情况记录簿制度、未履行日常环境监测或者未按规定报告进口固体废物经营情况和环境环境监测情况的,由所在地县级以上环境保护行政主管部门责令限期改正,可以并处3万元以下罚款;逾期拒不改正的,可以由

12/18/2014	固体废物进口管理办法
发证机关撤销其固体废物进口相关许可证。	
第四十九条 违反检验检疫有关规定进口固体废物的，按照《中华人民共和国进出口商品检验法》、《中华人民共和国进出口商品检验法实施条例》等规定进行处罚。	
违反海关有关规定进口固体废物的，按照《中华人民共和国海关法》和《中华人民共和国海关行政处罚实施条例》等规定进行处罚。	
擅自进口禁止进口、不符合国家环境保护控制标准或者相关技术规范强制性要求的固体废物，经海关责令退运，超过3个月怠于履行退运义务的，由海关依照《中华人民共和国海关行政处罚实施条例》的规定进行处罚。	
第五十条 进口固体废物监督管理人员贪污受贿、玩忽职守、徇私舞弊或者滥用职权，依法给予行政处分；构成犯罪的，依法追究刑事责任。	
第八章 附 则	
第五十一条 本办法中由设区的市级环境保护行政主管部门行使的监管职责，在直辖市行政区域以及省、自治区直辖的县级行政区域内，由省、自治区、直辖市环境保护行政主管部门行使。	
第五十二条 固体废物运抵关境即视为进口行为发生。	
第五十三条 进口固体废物利用企业是指实际从事进口固体废物拆解、加工利用活动的企业。	
第五十四条 来自中国香港、澳门特别行政区和中国台湾地区固体废物的进口管理依照本办法执行。	
第五十五条 本办法自2011年8月1日起施行。	
国务院环境保护行政主管部门、国务院商务主管部门、国务院经济综合宏观调控部门、海关总署、国务院质量监督检验检疫部门在本办法实施前根据各自职责发布的进口固体废物管理有关规定、通知与本办法不一致的，以本办法为准。	
分享到：	



中华人民共和国环境保护部
Ministry of Environmental Protection of the People's Republic of China

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Name: Solid waste management practices imports

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Key words: environmental regulations make solid waste import

Ministry of Environmental Protection

Ministry of Commerce

Development and Reform Commission

General Administration of Customs

Administration of Quality Supervision

Order

Decree No. 12

Import of solid waste management practices

According to "People's Republic of China Solid Waste Pollution Prevention Law" and relevant laws and administrative regulations "import of solid waste management practices." Is hereby promulgated, implemented since August 1, 2011.

Environmental Protection Minister Zhou Shengxian

Minister of Commerce Chen Deming

National Development and Reform Commission Zhang Ping

Customs Director Sheng Guangzu

AQSIQ Zhi Shuping

二〇一一年八月四日

Key words: environmental regulations make solid waste import

Import of solid waste management practices

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http://www.mep.gov.cn/gkml/hbb/bl/201105/t20110520_210978.htm

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Chapter I General Provisions

The first article in order to regulate the import of solid waste environmental management, to prevent the import of solid waste pollution, according to "People's Republic of China Solid Waste Pollution Prevention Law" and relevant laws and administrative regulations, development of this approach.

Article The term solid waste means the loss of existing use value generated in the production, life and other activities, or loss of use value, but has not yet been discarded or abandoned solid, semi-solid, liquid, and placed in a container gaseous items, materials, and legal and administrative regulations of the items included in the solid waste management, substance.

The term of imported solid waste means solid waste outside the People's Republic of China will be brought into the territory of the People's Republic of China activities.

Article III of this approach in any way apply to imports of solid wastes.

By gift, export entry returned, provide samples, etc. The solid waste brought into the territory of People's Republic of China, the entry is not repaired generated solid waste and re-exported abroad repair or transported into the country out of the solid material processing generated waste, except as otherwise provided, also apply this approach.

Article prohibits the transfer of solid waste import-related licenses.

The term related to the transfer of solid waste import license, refer to:

(A) the sale or lease, lend solid waste import-related licenses;

(B) the use to buy or rent, borrow solid waste import-related solid waste import permit;

(C) The import of solid waste transfer all or part of the import of solid waste to use business-related units or individuals other than the stated license.

Article outside the People's Republic of China prohibits solid waste dumped, piled up and disposal.

Prohibit solid waste re-export.

Without obtaining the import of solid waste solid waste import permit shall be paid into the relevant customs supervision options, including bonded zones, export processing zones, bonded logistics park, bonded port area and other special customs supervision and bonded logistics center (A / B type), bonded Customs bonded warehouses and other regulatory sites (hereinafter referred to as "special customs supervision area and place").

Unless otherwise specified, the import of solid waste shall transit formalities (except paper).

Article environmental protection administrative department of the State Council of the National Solid Waste Management Environmental imported unified supervision and administration. State Council department in charge of commerce, economic comprehensive macro-control departments of the State Council, the Customs General Administration of Quality Supervision, Inspection and Quarantine and the State Council department in charge of the management of solid waste import-related work in their respective areas of responsibility.

Above the county level environmental protection administrative department of the administrative regions of solid waste imported environmental management supervision and management. Competent commercial departments at all levels, economic comprehensive macro-control departments, customs, entry-exit inspection and quarantine departments in their respective responsibilities for the implementation of solid waste import-related supervision and management.

Environmental protection administrative department of the State Council in conjunction with the State Council department in charge of commerce, economic comprehensive macro-control departments of the State Council, the Customs Department, the State Department of Quality Supervision, Inspection and Quarantine departments to establish a coordination mechanism of imported solid waste management, the implementation of import of solid waste management information sharing, coordination of solid waste important matters of import and operations supervision and management.

Article No unit or individual has the right to the competent administrative departments of environmental protection, commerce department, economic comprehensive macro-control departments, customs and entry-exit inspection and quarantine departments to report a violation of solid waste imports and imports of solid waste regulatory program of pollution behavior.

Chapter II General Provisions

Article VIII banned the import of hazardous waste. Prohibit transboundary movements of hazardous wastes by th

e People's Republic of China.

With heat recovery for the purpose of prohibiting the import of solid waste.

A ban on imports of raw materials can not be used or can not be harmless way to use solid waste.

Prohibit the import or domestic generation stockpiling large and have not been fully utilized solid waste.

There is no ban on imports applicable national environmental protection control standards or technical specifications and other relevant mandatory requirements of solid waste.

Is prohibited to order delivery (TO ORDER) way of solid waste carrier entry.

Article IX of the territory can make up for the shortage of resources, and in accordance with the country's economic and technological conditions can be harmless utilization of solid waste as raw materials, according to the emissions intensity of its processing and utilization process, the implementation of automatic licensing restrictions on imports and imports category management.

Article X of environmental protection administrative department of the State Council in conjunction with the State Council department in charge of commerce, economic comprehensive macro-control departments of the State Council, the Customs Department, the State Department of Quality Supervision, Inspection and Quarantine departments to develop, adjust and publish the ban on the import, import restrictions, and automatic licensing of imports of solid waste directory .

Article XI included in the ban on the import ban on the import directory of solid waste.

Import or import restrictions included automatic import license directory of solid waste, solid waste must obtain in the relevant import license.

Article XII of imported solid waste should be taken to prevent the scattering, anti-erosion, anti-leakage or other measures to prevent environmental pollution.

Article XIII of imported solid waste shipment, customs declaration shall comply with the provisions of the relevant provisions shall be formulated by the General Administration of Customs.

Article XIV of imported solid waste must comply with the mandatory requirements of solid waste-related environmental control standards or technical specifications for imported raw materials and so on. If the goods do not meet the solid waste environmental control standards or technical specifications related to the import of raw materials and other solid waste can be used as a mandatory requirement, may not be imported.

Article XV application and approval of imported solid waste, in accordance with the principle of risk minimization, the "nearest port" declaration.

Article XVI implement national registration system for foreign suppliers of imported solid wastes as raw materials. Chinese exports to foreign suppliers of solid wastes as raw materials, and shall obtain a certificate of registration of the State Council of Quality Supervision, Inspection and Quarantine issued by the department.

National registration system for the implementation of domestic consignees of imported solid wastes as raw materials. Domestic consignees of imported solid wastes as raw materials before signing a foreign trade contract, shall obtain a certificate of registration of the State Council of Quality Supervision, Inspection and Quarantine issued by the department.

Article XVII environmental protection administrative department of the State Council on the use of imported scrap metal processing appliances, large environmental risks scrap wire and cable, electrical waste and other solid waste business, the implementation of accreditation designated enterprise management. Management measures shall be formulated by the State Council administrative department of environmental protection.

Article XVIII The State encourages restrict imports of solid waste within the import of waste set "Circle area management" processing and utilization of the park.

Imported waste "Circle area management" shall comply with the laws, regulations and national standards. Construction specifications and requirements of the importing waste "Circle area management" park by the environmental protection administrative department of the State Council in conjunction with the State Council department in charge of commerce, economic comprehensive macro-control departments of the State Council, the Customs Department, the State Department of Quality Supervision, Inspection and Quarantine departments.

Article XIX of imported solid waste companies in EPZs use of processing trade imports of solid waste, solid waste

aste imports must hold the relevant license.

Imported solid waste recycling business outside the export processing zones in processing trade imports of solid waste, must hold a valid "Processing Trade Business Approval Certificate" issued by the commerce department, effective customs processing trade handbook issued (books) and solid waste import-related licenses.

Processing trade imports of solid waste, or for some reason can not export finished products domestic demand, processing trade enterprises do not need to apply for re-import of solid waste-related permits; unprocessed raw imported solid waste only reserved for its own use.

Chapter III of solid waste import license management

Diershitiao import restrictions included in the catalog of solid waste imports, shall be subject to the environmental protection administrative department of the State Council in conjunction with the foreign trade department of the State Council examined and approved. Inclusion of automatic import licensing import directory of solid waste, automatic licensing procedures should be handled according to law.

A twenty- year solid waste import-related license is valid.

Imported solid waste should be in the period relevant license to use, whether overdue are automatically invalidated after use.

Solid waste import permit for any reason related to the unused portion within the validity period, the use of business on the 30th issuing authority should apply for an extension in the expiry date. After deducting the amount of the issuing authority has been used to re-import of solid waste-related permits issued, and marked "Use extension" and the original license in the remarks column.

Import of solid waste-related permit can be extended only once, extension shall not exceed 60 days.

Article 22 The import of solid waste-related permits the implementation of "one license for one off" management. Under normal circumstances the import of solid waste-related permits as "non-batch, one license" system, such as to implement "a lot a license", it should at the same time import of solid waste in the remarks column of the relevant license to print the words "one license."

"One license one customs" means solid waste import permit can only be related to a customs declaration; "a lot a license" means solid waste import-related licenses in the period a declaration of use; "one license" means solid waste import-related licenses can be repeated declarations used in the period, and subtract the number of endorsements by customs import batch, when the last batch of imports, allowing overfilled ceiling of 3 percent of solid waste import the actual balance of the relevant license, and regardless of whether there is still Balance, Customs will be retained after the endorsement original archive.

Article 23 The import of solid waste matters set forth in the relevant license changes, use of corporate procedures shall apply to re-apply for the import of solid waste-related permits.

After issuing authority accepting the application, cancellation of the original permit, and announced cancellation of the certificate number.

Article 24 The import of solid waste management requirements for approval, in accordance with relevant state regulations.

Chapter IV Inspection and Quarantine and customs procedures

Article 25 The import of solid waste at the time of acceptance of the carrier operating services, the client should be required to provide the following evidence freight:

(A) solid waste import-related licenses;

Domestic solid waste consignee (b) can be used as raw materials import registration certificate;

Solid Waste foreign suppliers (three) as raw materials import registration certificate;

(D) pre-shipment inspection certificate imported solid wastes as raw materials.

Article 26 of the import of solid waste, designated by the State Department of Quality Supervision, Inspection and Quarantine departments pre-shipment inspection agencies to implement pre-shipment inspection; inspection and pre-shipment inspection certificate issued.

Import of solid waste delivered to solid waste import port after the relevant license specified domestic solid waste consignee shall hold the relevant license import inspection and quarantine report linking, pre-shipment inspection

ction certificates and other necessary documents to the port of entry and exit inspection and quarantine agencies.

CIQ inspection and quarantine, to meet the mandatory requirements of the national environmental protection control standards or relevant technical specifications, etc., issued by the "Immigration Customs Clearance of goods," and notes "preliminary inspection and quarantine, not found not complying with the National Environmental Protection Control standard material "; do not meet the mandatory requirements of the national environmental protection control standards or relevant technical specifications, etc., issued a notice of inspection and quarantine treatment, and promptly notify the port customs and port of the province, autonomous region or municipality administrative department of environmental protection.

After the port of the province, autonomous region and municipality environmental protection administration departments received unqualified imported solid waste inspection and quarantine notification, shall promptly notify the use of corporate provinces, autonomous regions, municipalities and environmental protection administrative department of environmental protection administrative department of the State Council.

For the test results satisfied, the applicant shall apply for re-inspection in accordance with the relevant provisions of the import and export of goods for re-inspection work. State Department of Quality Supervision, Inspection and Quarantine departments or CIQ inspection work according to the actual situation, and in conjunction with the administrative department of environmental protection work together to implement the re-inspection.

Article 27 Unless otherwise specified, to restrict imports of the class or classes of automatic licensing of imports of solid wastes as raw materials, should hold solid waste import-related permits and inspection and quarantine authorities issued a "Immigration Customs Clearance of goods." and other relevant documents to the customs clearance procedures for import.

Article 28 of the Customs importer imported goods will incorporate its solid waste management range dissatisfied, he may apply for administrative reconsideration, it may bring a suit before a people's court.

Customs suspected consignee of imported goods imported goods declared for solid waste, it may require the consignee to send port inspection and quarantine department of solid waste property inspection and, if necessary, can be sent directly to the Customs port inspection and quarantine department of solid waste property inspection, and handled in accordance with the test results.

Port inspection and quarantine authorities should issue an inspection results, and indicate whether they are solid waste.

Customs or consignee of the conclusions of the examination location port inspection and quarantine departments have objections to the environmental protection administrative department of the State Council in conjunction with the Customs Department, the State Department of Quality Supervision, Inspection and Quarantine departments designated specialized agencies to identify the goods imported, whether an article is solid waste and Solid waste types were identified.

"Solid Waste Identification Guidelines" and the relevant procedures and methods in conjunction with the identification of the Customs Department, the State Department of Quality Supervision, Inspection and Quarantine formulated by the department of environmental protection administrative department of the State Council.

During the test, or to identify, customs clearance does not accept corporate guarantee application. The identification of goods produced during testing or related expenses and losses borne by the consignee of the imported goods themselves.

Identification of imported solid waste covered by this article, it should be the "Solid Waste Identification Guidelines" as the basis.

Article 29 of the solid waste from abroad dumped, piled up, disposal, imports are banned the import of solid waste or unauthorized import of solid waste, as well as unqualified imported solid waste shall be ordered by the port customs law importer or the carrier within the prescribed period of solid waste will be returned to the original undisturbed exporter, importer or carrier bear the responsibility and costs of customs formalities does not relieve it of the obligation, the importer or carrier may not give up of solid waste.

Consignee can not confirm the entry of solid waste, the carrier returned to the customs application or may be o

ordered by the customs carrier returned. Bear the responsibility and cost carrier, it does not absolve the customs formalities.

Article 30 of the parties refuses to send back more than three months or not transported out of the solid waste, the port customs inspection and quarantine authorities in conjunction with the port and port location of the administrative department of environmental protection to take coercive measures against the importer or carrier to be returned.

Article 31 of the Customs indeed not be transported out or decide not to send back the solid waste, the importer to the port customs application (by the carrier or jointly and severally liable when an unknown third party application importer), reference to the principle of proximity, commissioned by the Customs to auction or transfer of provincial way, the unit has a harmless use or disposal capacity of autonomous regions and municipalities environmental protection administrative department finds that the comprehensive utilization or harmless disposal and disposal costs related to stranded costs borne by the importer, the importer shall be borne by the carrier is unknown.

After the commission on revenue generated by utilization or disposal of harmless deduct processing costs, shall be handed over by the unit has a harmless use or disposal capacity of customs to the state treasury. Customs at all levels without approval, the auction may not prohibit the import of solid waste the country. Specific management measures by the General Administration of Customs jointly with the environmental protection administrative department of the State Council formulated separately.

Article 32 The Customs shall be returned, such as post-processing briefing and port inspection and quarantine authorities of the province, autonomous region or municipality administrative department of environmental protection.

Port of the province, autonomous regions and municipalities environmental protection administrative department shall notify the import of solid waste recycling companies of the province, autonomous region or municipality administrative department of environmental protection and environmental protection administrative department of the State Council.

CIQ and environmental protection administrative department shall make a deal for the unit depending on the circumstances.

Chapter V Supervision and Administration

Article 33 The import of solid waste solid waste to be imported from the relevant license stated use of corporate use as a raw material.

Article 34 The import of solid waste recycling business in an environmentally sound manner should be imported solid waste processing and utilization.

Customs to auction or commissioned by way of transfer of imported solid waste utilization or disposal unit, must be borne by all of the import of solid waste utilization or disposal harmless.

Article 35 The use of imported solid waste enterprise shall establish operating conditions logbook, factual account of each batch of imported solid waste source, type, weight or quantity, destination, receiving, dismantling, utilization and storage time, the name of the transporter and contact information, the type of imported solid waste residue after processing and utilization, weight or quantity, destination and so on. Operating logbook and related documents, videos and other materials the original documents should be kept at least five years.

The use of imported solid waste companies should regularly monitor the daily discharge of pollutants. Monitoring reports shall be kept for at least five years.

Imported solid waste shall be in accordance with the use of corporate environmental protection administrative department of the State Council, regular reports of imported solid waste operations and environmental monitoring to the provinces, autonomous regions and municipalities environmental protection administrative department. Provinces, autonomous regions and municipalities environmental protection administrative department of environmental protection administrative department of the summary report of the State Council.

Other solid waste management units importers, agents, carriers and other sources should be recorded by agents of imported solid waste, type, weight or quantity, destination, etc., and accept the supervision and inspection departments. Record information and related documents, videos and other materials the original certificate shall be kept

t at least 3 years.

Article 36 provinces, autonomous regions and municipalities directly under the administrative department of environmental protection shall organize imported solid waste recycling companies to conduct field inspections and supervisory monitoring, found that one of the following circumstances, the State Department should know the environment in five working days of newspaper protection administrative department:

(A) concealing relevant information or providing false materials for solid waste import-related licenses or transfer of solid waste import-related licenses;

(B) emission standards than state or local regulations, or more than the total amount of pollutant emissions control targets;

(C) the residue of imported solid waste processing and utilization is not harmless after use or disposal;

(D) Failing to report the case of imported solid waste management and environmental monitoring, or fraud in reporting.

Environmental protection administrative department of the State Council and the provinces, autonomous regions and municipalities environmental protection administrative department of the situation should be documented, as a basis for approving the import of solid waste-related permits.

Environmental protection departments at all levels of administration, commerce department, economic comprehensive macro-control departments, customs, entry-exit inspection and quarantine departments in accordance with their respective responsibilities for the right to import solid waste associated with the supervision and inspection units.

The units being inspected shall truthfully report the situation and provide the necessary materials. Inspection authorities shall be inspected units conservative technology and business secrets.

When inspecting authorities carry out spot checks, can take on-site monitoring, collecting samples, inspect or copy the relevant information and other measures.

Inspectors carry out spot checks shall produce documents.

Chapter VI Special Provisions customs supervision and places

Article 37 of the solid waste from abroad into the customs supervision and places, the units shall apply for import of solid waste-related permits and applications for inspection and quarantine. Solid waste imported from customs supervision and places outside the territory of area or between customs supervision and places in and out, without handle solid waste import-related licenses.

Article 38 The customs supervision and the premises shall not be stored in the name of re-exports of imported solid waste.

Article 39 special customs supervision areas and places within the unit is not re-exported produce defective products, waste, scrap, and other affected goods, such as belonging to restrict imports or automatic licensing the import of solid waste in the territory and its special customs out between the regulatory regions and places, or between customs supervision and places in and out, from submission of solid waste import-related licenses. CIQ does not carry out the inspection.

Article 40 The customs supervision unit and the premises are not re-exported produce defective products, waste, scrap, the affected goods, etc., as part of a ban on imports of solid waste, to be out of use or disposal areas should be made the administrative department of environmental protection to the municipal customs supervision and administration departments and establishments districts proposed location-generating unit or units to collect application and submit the following application materials:

(A) the transfer of solid waste out of the application area;

Contracts (b) the applicant and signed by the receiving unit;

After the annual inspection of the business license (three) receiving unit;

(D) the proposed transfer of the area of solid waste generation process and technology, composition analysis, physical and chemical properties of the registration form;

(E) the receiving unit use or disposal methods described, including recycling or disposal facility location, type, capacity and utilization of waste gas treatment or disposal generated in the process, waste water, waste treatment and other presentation materials;

(F) the receiving unit can prove to the area of solid waste in an environmentally sound way to use or dispose of the material; the area of waste is hazardous waste, held by the receiving unit shall provide a "hazardous waste operating license," a copy, and reception unit stamped chapter.

Article 41 The administrative department of environmental protection and municipal customs supervision and administration department and location of sites districts accepting applications for the area after making the decision to grant or not to grant the district, approval documents valid for 1 year.

CIQ municipal administrative department of environmental protection with special customs supervision areas and places administrations and approval documents seat districts handle customs formalities, and solid waste from the implementation of inspection. Customs municipal administrative department of environmental protection with special customs supervision areas and places administrative departments and districts location required approval documents relevant procedures.

Article 42 special customs supervision areas and places within the unit of solid waste, the area of inter-provincial transfer, storage, and disposal shall be in accordance with the "People's Republic of China Solid Waste Pollution Prevention Law" Article 23 of the relevant provinces, autonomous regions and municipalities directly under the administrative department of environmental protection to apply.

Special customs supervision within the unit area and places of solid waste generated hazardous waste or waste electrical and electronic products shall enforce hazardous waste management system or waste electrical and electronic products out of the district administration according to law.

Chapter VII Penalties

Article 43 violation of the provisions, the solid waste outside the People's Republic of China are dumped, piled up, disposal, imports are banned the import of solid waste or unauthorized import restrictions on imports of solid waste, or to use as a raw material name can not be used as a raw material imported solid waste, investigated by the Customs according to "People's Republic of China Solid Waste Pollution Prevention Law" Article 78 of the law liability, and may revoke its solid waste import permit from the relevant issuing authority.

Violation of the provisions in the name of imported solid waste transboundary movements of hazardous wastes by the People's Republic of China, and held liable by the Customs according to "People's Republic of China Solid Waste Pollution Prevention Law" provisions of Article 79, and may consist of issuing authority to withdraw its solid waste import-related licenses.

Violation of the provisions, smuggled solid waste, be punished by the Customs in accordance with relevant laws and administrative regulations; constitutes a crime, be held criminally responsible.

Article 44 of the illegal immigrants already solid waste, in accordance with the "People's Republic of China Solid Waste Pollution Prevention Law" Article 80 for processing.

Article 45 in violation of the provisions related to the transfer of solid waste import license, the revocation of its solid waste import-related license issuing authority; constitute a crime, be held criminally responsible.

Article 46 with fraud, bribery and other illegal means to obtain the relevant permits the import of solid waste, according to "People's Republic of China Administrative Licensing Law" provisions of the revocation of its solid waste import-related license issuing authority; constitute a crime be held criminally responsible.

Article 47 violation of the provisions of the residue after the import of solid waste processing and utilization of non-use or disposal of harmless by above the county level environmental protection administrative department under the "People's Republic of China Solid Waste Pollution Prevention Article 68 (b) of the Act "shall be ordered to stop illegal activities, within a time limit, and impose a fine of 10,000 yuan 100,000 yuan; overdue refuses to correct, may revoke its solid waste by the issuing authority import-related licenses. Causing environmental pollution accidents, according to "Solid Waste Pollution Prevention Law" Article 82 shall apply.

Article 48 violation of the provisions, logbook system operation is not performed, did not perform routine environmental monitoring, or fail to report the case of imported solid waste management and environmental monitoring of the environment, the local environmental protection administration departments above the county level ordered to make corrections, and may impose a fine of 30,000 yuan; overdue refuses to correct, may revoke its solid waste import-related license by the issuing authority.

Article 49 in violation of the provisions of the relevant provisions of the inspection and quarantine of imported solid waste, according to "People's Republic of China Import and Export Commodity Inspection Law", "Import and Export Commodity Inspection Law Implementation Regulations People's Republic of China" and other penalties.

Violation of the relevant provisions of the Customs import of solid waste, in accordance with the "People's Republic of China Customs Law" and the "People's Republic of China Customs Regulations on Administrative Punishment" and other penalties.

Unauthorized import ban on imports, does not meet the national environmental protection control standards or technical specifications related to the mandatory requirements of solid waste by the Customs ordered returned, more than three months returned lazy to fulfill the obligation by the Customs in accordance with "People's Republic of China customs administration Implementing Regulations shall be punished, "the punishment.

Article 50 The import of solid waste management oversight of corruption, bribery, dereliction of duty, favoritism or abuse of authority, shall be given administrative sanctions; constitutes a crime, be held criminally responsible.

Chapter VIII Supplementary Provisions

Article 51 of this approach in the exercise of the administrative department of environmental protection by the municipal districts of supervisory duties, in the municipality as well as the administrative regions of provinces, autonomous regions and directly under the county-level administrative areas, provinces, autonomous regions and municipalities environmental protection administrative department exercised.

Article 52 solid waste delivered to the customs territory is deemed to import behavior.

Article 53 The import of solid waste is the actual use of enterprise engaged in the import of solid waste dismantling, processing and utilization activities.

Article 54 The import management from Hong Kong, China and Macao Special Administrative Region and Taiwan Chinese solid waste in accordance with the Measures.

Article 55 These Measures shall go into effect August 1, 2011.

The relevant provisions of imported solid waste management environmental protection administrative department of the State Council, the State Council department in charge of commerce, economic comprehensive macro-control departments of the State Council, the Customs Department, the State Department of Quality Supervision, Inspection and Quarantine departments prior to the implementation of these measures issued in accordance with their duties, notice and this approach inconsistent with this approach prevail.

Share to:

Exhibit K

To: Suarez, Barbara
Cc: Austin, Michael; Amador, George; Francey, Donald N
Subject: RE: Booking 560323561 4 X 40's Used Tires

Thank you Barbara,
I understand completely and have already gotten Miami Corporate involved.

Appreciate all your help and follow up.

John

From: Barbara.Suarez@maersk.com [<mailto:Barbara.Suarez@maersk.com>]
Sent: Wednesday, May 14, 2014 7:59 AM
To: John Kamada
Cc: Michael.Austin@maersk.com; George.Amador@maersk.com; Donald.N.Francey@maersk.com
Subject: RE: Booking 560323561 4 X 40's Used Tires

Good morning John,

Maersk is not the bad guy here. In fact, your customer declared auto parts and shipped a restricted commodity to China. Of course, they choose to ignore that this is root cause of cargo sitting and facing re-export. Actually when this situation first arose, the options provided to Econocaribe were to find a new buyer or re-export but Econocaribe was not able to provide required commercial docs to initiate this process, prior to Customs seizure of the cargo.

As per North China local customs regulations, Customs retains the authority to order disposition of non-claimed cargo. Even when we have both consignee and shipper's abandonment letter, the cargo remains under control of Customs. We were told and communicated that there is no clear timeline of how long Customs will take to render an approval for next move (disposal, return or auction).

Regret this will pass to Legal Recovery on our side as any further mitigation is out of my hands, but please keep in mind that your customer is not a party to our B/L and shipper is ultimately liable for all charges under our Maersk Bill of Lading.

Requesting all parties get on a call to discuss next step.

Barbara Suarez
Customer Solutions Manager
Maersk, Inc.
790 N.W. 107th Avenue, Suite 110
Miami, Florida 33172
Tel: [305-485-3657](tel:305-485-3657)
Fax: [305-223-6099](tel:305-223-6099)

From: John Kamada [<mailto:jkamada@econocaribe.com>]
Sent: Tuesday, May 13, 2014 6:20 PM
To: Suarez, Barbara
Cc: Austin, Michael; Amador, George; Francey, Donald N
Subject: RE: Booking 560323561 4 X 40's Used Tires

Hi Barbara,
Here is my customer's final response.
Sorry that I will be very blunt in this email.
I don't know how you have communicated with carrier. By my guess you talked to them about reducing costs and to talking the containers back?
I wouldn't say you are not helping, however I am afraid we are in a very weak position if continuing the negotiation like the way is going. First of all, I want you to understand that, Amoy

is victim in this case, and I have all the proof to show that we did follow the procedure by gathering cargo information prior to shipping and we did try finding the shipper to solving this problem soonest we found out the problem. We have already lost a lot on all transportation costs for these containers. Maersk is the world largest company, EconoCaribe is also a large corporation, but Amoy is not. You can represent Econo to mitigate costs from \$171k + return to \$70k + return, it might seem good, but. This is actually a poor negotiation. And to be honest, a small forwarder like us cannot afford the loss and we just simply cannot pay.

I will not take the containers back. carriers have their solutions for this kind of situation and I suggest you not to agree again for taking them back.

In this type of nightmare situation, carriers normally sends the threat notice, followed by attorney letters, followed by attorney harassment calls, followed by for a long time... but maybe we can avoid all these...

And we just have to find our best negotiation key to play forward. I presented to carrier our good intention but also showed them that, if they insist, things would go nowhere and they can't get anything out of us. Carriers will eventually keeping the containers and billing a very small invoice to mitigate the problem. I mean, a very small invoice.

Im not sure what the normal legal process is but I guess we will have to go through the motions here. I am sorry, they simply wont pay anything.

john

From: Barbara.Suarez@maersk.com [<mailto:Barbara.Suarez@maersk.com>]

Sent: Monday, May 12, 2014 6:59 AM

To: John Kamada

Cc: Michael.Austin@maersk.com; George.Amador@maersk.com; Donald.N.Francey@maersk.com

Subject: RE: Booking 560323561 4 X 40's Used Tires

John,

Abandonment letter does not release shipper of liability. We requested the formal abandonment letter to see if we could put pressure on China Customs to order disposition. This cargo was mis-declared as 'auto parts' when in fact it was 'used tires' which is a restricted commodity into China and one which is heavily fined. Maersk did not sit on this. We kept communication flow going asking Maersk China to intervene but it is not uncommon for China Customs to hold onto cargo, sometimes over a year, to render a decision. At that time we made it known that best option was to find a new consignee or start re-export, which is what we're doing now.

As you know, the initial D&D (excluding re-export charges) quoted by Maersk China was \$171K and we went out and obtained mitigated amount of D&D \$50K plus the re-export charges, total all charges \$67K. As per our discussion on same, this amount fell within the numbers you and I discussed. While understand that there are several relationships involved in this transaction, Econocaribe is Maersk B/L shipper and ultimately will be held liable for all charges. Any further delays will cause charges to continue to creep up.

Regards,

Barbara

From: John Kamada [<mailto:jkamada@econocaribe.com>]

Sent: Friday, May 09, 2014 11:09 PM

To: Suarez, Barbara

Cc: Austin, Michael; Amador, George

Subject: Re: Booking 560323561 4 X 40's Used Tires

Exhibit L

From: Barbara.Suarez@maersk.com [mailto:Barbara.Suarez@maersk.com]

Sent: Monday, June 09, 2014 10:53 AM

To: Bob Goldenberg; John Kamada

Cc: Michael.Austin@maersk.com; George.Amador@maersk.com; Donald.N.Francey@maersk.com; Ana.Cohen@maersk.com

Subject: RE: Booking 560323561 4 X 40's Used Tires

Bob,

Maersk China has advised that the re-export charges of \$14,504 quoted are no longer valid because we have not initiated re-export process which takes time to coordinate and doubtful this can be completed now by the 6-30 deadline. Cargo moved under Seaway Bill of Lading and our Carrier obligation is to deliver cargo in accordance with named consignee's instructions. In this case, every attempt was made to contact BL consignee who said on several occasions that this was not their cargo and that is when we reverted back to Econocaribe to find a new buyer or re-export.

China Customs controls and decides when disposal can be arranged and for that reason, we don't have a final invoice from Customs. On that basis, Maersk China chose to petition Customs to allow re-export process to mitigate our exposure and costs, rather than let cargo continue to sit while Customs decides when to order disposition. If we let cargo continue to sit, until such a time that Customs actions, then 'yes', we'll be able to provide documentation, but we have no idea when that will be and cargo is on the clock for storage and Maersk D&D.

As you know, per BL and service contract terms, the shipper is responsible for and warrants its compliance with all applicable laws, rules and regulations, including, but not limited to, the export laws and government regulations of any country to/from or through which the Goods may be carried.

We have been at this for a while now and unless re-export charges are guaranteed, Maersk China will not initiate re-export of these containers. We were able to mitigate the D&D down significantly but afraid these costs will continue to rise while we wait for approval and guarantee to proceed.

Regards,

Barbara Suarez

Customer Solutions Manager

Maersk, Inc.

790 N.W. 107th Avenue, Suite 110

Miami, Florida 33172

Tel: [305-485-3657](tel:305-485-3657)

Fax: [305-223-6099](tel:305-223-6099)

Exhibit M

From: Melissa / Amoy Line [<mailto:melissa@amoyline.com>]
Sent: Monday, July 01, 2013 11:12 AM
To: John Kamada; Ariel Martinez
Cc: 'Krystal / Amoyline'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

no, we did not find buyer because of the commodity is not permitted to go into China.

I wanted to list the buyer on BL of what shipper gave us originally. please let me know.

Melissa Chen

~~~~~

## **Amoy International LLC**

**[FMC License No.: 019113N] [FMC Bond No.: 8941895]**

**[China MOC License No.: MOC-NVO03586]**

14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)

Ph: (626) 855-3077 Fax: (626) 855-3078 Direct: (626) 616-2008

649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)

Ph: (347) 689-9255 Fax: (347) 689-9267

Website: [www.amoyline.com](http://www.amoyline.com)

**Please [click here](#) to download our ISF Form.**

~~~~~

P Save a tree. Please don't print this e-mail unless it's really necessary! :)

From: John Kamada [<mailto:jkamada@econocaribe.com>]
Sent: Monday, July 01, 2013 11:01 AM
To: Melissa / Amoy Line; Ariel Martinez
Cc: 'Krystal / Amoyline'
Subject: RE: New Booking from Oakland to Xingang - 04-439024

Exhibit N

Subject: Booking 560323561 4 X 40's

From: John Kamada <jkamada@econocaribe.com>

Date: 4/2/2014 3:45 PM

To: "Barbara.Suarez@maersk.com" <Barbara.Suarez@maersk.com>

CC: Ariel Martinez <amartinez@econocaribe.com>, "Michael.Austin@maersk.com" <Michael.Austin@maersk.com>, "George.Amador@maersk.com" <George.Amador@maersk.com>, "Ana.Cohen@maersk.com" <Ana.Cohen@maersk.com>

Sounds good Barbara.

Thank you very much for your help on this.

John Kamada
Econocaribe Los Angeles

On Apr 2, 2014, at 12:33 PM, ["Barbara.Suarez@maersk.com"](mailto:Barbara.Suarez@maersk.com) <Barbara.Suarez@maersk.com> wrote:

Hi John,

Have asked Maersk China to provide us with a complete cost picture. Shipper is responsible for time container sits awaiting Customs disposition. I know here on our import cargoes, when cargo goes to General Order, storage charges apply. What is so unfortunate is the amount of time it's taken Xingang Customs to give us their orders. Let's see what we hear back and then we can look to see what is best option here.

Regards,

Barbara Suarez
Customer Solutions Manager
Maersk, Inc.
790 N.W. 107th Avenue, Suite 110
Miami, Florida 33172
Tel: 305-485-3657
Fax: 305-223-6099

-----Original Message-----

From: John Kamada [<mailto:jkamada@econocaribe.com>]
Sent: Wednesday, April 02, 2014 2:09 PM
To: Suarez, Barbara; Ariel Martinez
Cc: Austin, Michael; Amador, George; Cohen, Ana
Subject: RE: Booking 560323561 4 X 40's

Thank you Barbara,

I do have one question. Are we responsible for the storage during this time that Chinese Customs is figuring out what to do? Seems like they could sit on these for another year and just send us the bill? Please let me know. Our customer is aware of the situation, just trying to cover all the bases because I know they will ask.

Thanks,

John

-----Original Message-----

From: Barbara.Suarez@maersk.com [<mailto:Barbara.Suarez@maersk.com>]
Sent: Wednesday, April 02, 2014 9:12 AM
To: Ariel Martinez; John Kamada
Cc: Michael.Austin@maersk.com; George.Amador@maersk.com; Ana.Cohen@maersk.com
Subject: RE: Booking 560323561 4 X 40's

Good afternoon Ariel/John:

Just wanted to bring you up to date on the longstanding abandoned containers in China.

We have been constantly following up with our office overseas waiting to hear back on Customs disposition. Just heard this morning that Customs is ordering these containers to return to origin, as cargo is 'cut baled tires', which is a restricted commodity. If you will recall, this cargo was originally manifested as auto parts not tires and cargo subject to fines by China Customs.

I have asked our office to petition Customs to allow destruction at destination but waiting to hear back. Have asked them to provide all costs associated with the storage, fines and other fees which may apply so we can provide those to you as shipper of record.

You may want to consider diverting this cargo to another destination/new buyer if this helps to mitigate costs of abandonment.

Will keep you posted.

Regards,

Barbara Suarez
Customer Solutions Manager
Maersk, Inc.
790 N.W. 107th Avenue, Suite 110
Miami, Florida 33172
Tel: 305-485-3657
Fax: 305-223-6099

-----Original Message-----

From: Ariel Martinez [<mailto:amartinez@econocaribe.com>]
Sent: Friday, November 01, 2013 12:48 PM
To: Suarez, Barbara; John Kamada
Cc: Austin, Michael; Amador, George
Subject: RE: Booking 560323561

Thank you for the update Barbara.

At this time we can only wait to see how China Customs wants to handle this issue.

Please keep us posted.

Regards,

Ariel Martinez

Account Executive
Econocaribe Consolidators, Inc.
637 EAST ALBERTONI ST. #104
CARSON CA 90746
Cell 310.413.6707
Tel 310.817.2746 Fax 310.817.2751
Email: amartinez@econocaribe.com

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If you received this message in error, then you should immediately notify the sender by telephone or return email and then delete it from your computer. Any views or opinions expressed in this email are not necessarily those of Econocaribe Consolidators, Inc.
ASK ME ABOUT OUR LA "EXPORT" CFS CHANGE TO AZ WAREHOUSE, EFFECTIVE JUNE 17, 2013 AZ CFS-2220 E. Carson Street, Long Beach, CA 90810

-----Original Message-----

From: Barbara.Suarez@maersk.com [<mailto:Barbara.Suarez@maersk.com>]
Sent: Friday, November 01, 2013 9:05 AM
To: laxfcldept; John Kamada
Cc: Michael.Austin@maersk.com; George.Amador@maersk.com
Subject: Booking 560323561

Good morning John/Ariel,

Just following up ref our latest discussion with MSK China on this abandoned shipment.

Our office tells us that option of cargo owner re-exporting is a risk as Customs is very sensitive about this 'restricted' commodity (used cut-baled tires). Cargo manifested as auto parts.

Only option now is for Customs to proceed with their process of inspection and disposition:

- Still a chance they may order cargo back to origin as 'returned goods' (cargo prohibited/restricted import to China)
- Auction
- Destruction

While we wait to hear back from China Customs, just wanted to drop you a note as this is where we stand.

Best regards,

Barbara Suarez
Customer Solutions Manager
Maersk, Inc.
790 N.W. 107th Avenue, Suite 110
Miami, Florida 33172

Exhibit O

From: Barbara.Suarez@maersk.com [mailto:Barbara.Suarez@maersk.com]

Sent: Wednesday, June 11, 2014 3:37 PM

To: Bob Goldenberg; John Kamada

Cc: Michael.Austin@maersk.com; George.Amador@maersk.com; Donald.N.Francey@maersk.com; Ana.Cohen@maersk.com

Subject: RE: Booking 560323561 4 X 40's Used Tires

Hi Bob,

Maersk petitioned disposal from China Customs back in March, 2014, and so far no feedback. Containers remain at customs warehouse on terminal. Disposal is controlled by China Customs and not the carrier. Maersk China reports that Customs will not issue any type of invoice to the carrier, until they release a return order and decide to dispose or re-export. This is reason Maersk took the lead to arrange re-export and minimize customs fines and storage, which continues to accrue daily.

Now the previous out of pocket return costs we were quoted in April are no longer valid because we China agent does not have time to effect re-export by the 6/30 deadline. Please see updated costs.

You may want to also discuss with your agent in China to see if they can mitigate these re-export charges which being told are outside of our control.

Detention: USD50,000

Out of Pocket Return Cost: USD 21,754

Charge name	Amount(USD)
Depot cost:	1233
Customs warehouse cost:	9202
Return process cost :	3020
Export charge	729
Overdue customs examine and approve charge:	1372
Import agent charge	357
Customs declaration charge	499
Customs fine	5342
Total amount	21754

Demurrage: USD3141

Total amount USD74895.

[Barbara Suarez](#)

Customer Solutions Manager

Maersk, Inc.

790 N.W. 107th Avenue, Suite 110

Miami, Florida 33172

Tel: [305-485-3657](tel:305-485-3657)

Fax: [305-223-6099](tel:305-223-6099)

From: Bob Goldenberg [<mailto:bgoldenberg@econocaribe.com>]

Sent: Tuesday, June 10, 2014 4:34 PM

To: Suarez, Barbara; John Kamada

Cc: Austin, Michael; Amador, George; Francey, Donald N; Cohen, Ana

Exhibit P

From: Melissa / Amoy Line [<mailto:melissa@amoyline.com>]
Sent: Tuesday, May 13, 2014 12:24 PM
To: John Kamada
Cc: Lygia Reciola-Bratton
Subject: RE: ECCI BKG# LAC-CNXGG-04-439024 CARRIER BKG# 560323561

Hi John

Sorry that I will be very blunt in this email.

I don't know how you have communicated with carrier. By my guess you talked to them about reducing costs and to talking the containers back?

I wouldn't say you are not helping, however I am afraid we are in a very weak position if continuing the negotiation like the way is going. First of all, I want you to understand that, Amoy is victim in this case, and I have all the proof to show that we did follow the procedure by gathering cargo information prior to shipping and we did try finding the shipper to solving this problem soonest we found out the problem. We have already lost a lot on all transportation costs for these containers. Maersk is the world largest company, EconoCaribe is also a large corporation, but Amoy is not. You can represent Econo to mitigate costs from \$171k + return to \$70k + return, it might seem good, but. This is actually a poor negotiation. And to be honest, a small forwarder like us cannot afford the loss and we just simply cannot pay.

I will not take the containers back. carriers have their solutions for this kind of situation and I suggest you not to agree again for taking them back.

In this type of nightmare situation, carriers normally sends the threat notice, followed by attorney letters, followed by attorney harassment calls, followed by for a long time... but maybe we can avoid all these...

And we just have to find our best negotiation key to play forward. I presented to carrier our good intention but also showed them that, if they insist, things would go nowhere and they can't get anything out of us. Carriers will eventually keeping the containers and billing a very small invoice to mitigate the problem. I mean, a very small invoice.

I am in the out of office, please call my cell phone directly if you need to talk to me. [626-616-2008](tel:626-616-2008)

regards

Melissa Chen

~~~~~  
**Amoy International LLC**

[FMC License No.: 019113N] [FMC Bond No.: 8941895]

[China MOC License No.: MOC-NVO03586] [US DOT : MC-859087]

14145 Proctor Ave. Suite 14 City of Industry, CA 91746 (LA Office)

Ph: [626-855-3077](tel:626-855-3077) Fax: (626) 855-3078 Direct: (626) 616-2008

649 Morgan Ave, 4F3 Brooklyn NY 11222 (NY Office)

Ph: (347) 689-9255 Fax: (347) 689-9267

Website: [www.amoyline.com](http://www.amoyline.com) skype: amoyline

11/17/2014

FW: ECCI BKG# LAC-CNXXGG-04-439024 CARRIER BKG# 560323561 - sliang@customscourt.com - The Mooney Law Firm, LLC Mail

Please [click here](#) to download our ISF Form.

~~~~~

 **Save a tree. Please don't print this e-mail unless it's really necessary! :)**

Exhibit Q

Subject: RE: Settling the Chinese Abandoned Rubber case
From: "Barbara.Suarez@maersk.com" <Barbara.Suarez@maersk.com>
Date: 9/16/2014 11:31 AM
To: Bob Goldenberg <bgoldenberg@econocaribe.com>
CC: "Michael.Austin@maersk.com" <Michael.Austin@maersk.com>,
"Donald.N.Francey@maersk.com" <Donald.N.Francey@maersk.com>

Bob,

The original D&D was \$172,897 plus add to that the re-export/return cost of \$29,530 = Total \$202,427.

Rgds,
Barb

From: Bob Goldenberg [mailto:bgoldenberg@econocaribe.com]
Sent: Tuesday, September 16, 2014 9:50 AM
To: Suarez, Barbara
Cc: Austin, Michael; Francey, Donald N
Subject: RE: Settling the Chinese Abandoned Rubber case

Guys

I need a cost on what the real charges would have been if we did not negotiate.

We are going to try to settle with the company at fault and need to start with the higher fees to negotiate them to an amount that covers me for the cost.

Can you help.

I think it is somewhere in these email strings, \$200 k I recall

Bob

From: Bob Goldenberg
Sent: Friday, September 12, 2014 9:35 AM
To: Barbara.Suarez@maersk.com
Cc: Michael.Austin@maersk.com; Donald.N.Francey@maersk.com
Subject: RE: Settling the Chinese Abandoned Rubber case

We will authorize the movement of this back. Use the rates that are in place in our contract.

Bob

Wire Detail Report

User: F0160CL

Single Wire Transactions

Application: Non-Repetitive Intl USD
Value Date: 09/02/2014
Created By: F0160CL
Modified By: F0160CL
Currency: USD
Wire # : 2408144
Line ID:
Status: ACKNOWLEDGED
Host Ref. No.: 140902001620
Payment Network Ref. No.:
Result Text:
Amount: \$70,000.00
ABA: 063210112
Debit Account #: 9660209389
Receiving Bank ID Type: SWIFT BIC
Receiving Bank ID: BKCHCNBJ21A
Receiving Bank Name: BANK OF CHINA
Receiving Bank Address: TOWER AB BUILDING NO. 5:, TANGGU, CHINA
Intermediary Bank ID Type:
Intermediary Bank ID:
Intermediary Bank Name:
Intermediary Bank Address:
Beneficiary Bank ID Type:
Beneficiary Bank ID:
Beneficiary Bank Name:
Beneficiary Bank Address:
Beneficiary Account #: 281760053909
Beneficiary Name: CHINA OCEAN SHIPPING AGENCY TIANJIN
Beneficiary Address: Tianjin, China
Reference for Beneficiary:
OBI:

BBI:

Requesting Party Account#:

Requesting Party Name:

Requesting Party Address:

Total Amount Single Wire: \$70,000.00

Total Count Single Wire: 1

Grand Total Amount: \$70,000.00

Grand Total Count: 1

Exhibit R

 MAERSK LINE		BILL OF LADING FOR OCEAN TRANSPORT OR MULTIMODAL TRANSPORT		SCAC MAEU B/L No. 595854629
Shipper VICTORY MARITIME SERVICES (CHINA JLTD 504 CTOWER CCCITY CENTER CXI KANG ROAD HE PING DISTRICT CTIANJIN CCHINA*		Booking No. 595854629 Export references ZHTJSE141114277 Onward inland routing (Not part of Carriage as defined in clause 1. For account and risk of Merchant)		
Consignee (negotiable only if consigned "to order", "to order of" a named Person or "to order of bearer") ECONOCARIBE CONSOLIDATORS, INC, ECONOCARIBE E ALBERTONI ST, 637 STE 208 Carson, 90746 CA, United States		Notify Party (see clause 22) ECONOCARIBE CONSOLIDATORS INC, 2401 NW 69TH ST Miami, FL 33147 FL, United States Emails: miami-imports@econocaribe.com bgoldenberg@econocaribe.com		
Vessel (see clause 1 + 19) HAMMONIA VIRGINIA	Voyage No. 1404	Place of Receipt. Applicable only when document used as Multimodal Transport B/L. (see clause 1)		
Port of Loading XINGANG	Port of Discharge MIAMI,FL	Place of Delivery. Applicable only when document used as Multimodal Transport B/L. (see clause 1)		

PARTICULARS FURNISHED BY SHIPPER

Kind of Packages; Description of goods; Marks and Numbers; Container No./Seal No. SHIPPED ON BOARD HAMMONIA VIRGINIA \ 1404 ON 2014-11-25 AT XINGANG 4 containers said to contain 100 PACKAGES BALED, USED TRUCK TIRES, REFUSED Re-exported in accordance with Chinese Customs order N/M PONU1750788 ML-CN1486203 40 DRY 8'6 25 PACKAGES 22000.000 KGS 50.0000 CBM Shipper Seal : 2300720 PONU1877617 ML-CN1486205 40 DRY 8'6 25 PACKAGES 22000.000 KGS 50.0000 CBM Shipper Seal : 2300718 MSKU6129259 ML-CN1486204 40 DRY 8'6 25 PACKAGES 22000.000 KGS 50.0000 CBM Shipper Seal : 2300719 MRKU0232720 ML-CN1486201 40 DRY 8'6 25 PACKAGES 22000.000 KGS 50.0000 CBM Shipper Seal : 2300717 SHIPPER'S LOAD, STOW, WEIGHT AND COUNT FREIGHT COLLECT CY/CY	Weight 88000.000 KGS	Measurement 200.0000 CBM
---	-----------------------------	---------------------------------

Above particulars as declared by Shipper, but without responsibility of or representation by Carrier (see clause 14)

Freight & Charges Basic Ocean Freight Export Service Late Gate Service Documentation Fee - Origin Terminal Handling Service- Origin Total CNY	Rate 4325.00 100.00 450.00 1150.00	Unit Per Container Per Container Per Bill of Lading Per Container	Currency USD CNY CNY CNY CNY	Prepaid CNY	Collect 17300.00 400.00 2400.00 450.00 4600.00 7850.00
Carrier's Receipt (see clause 1 and 14). Total number of containers or packages received by Carrier. 4 containers		Place of Issue of B/L Miami		SHIPPED, as far as ascertained by reasonable means of checking, in apparent good order and condition unless otherwise stated herein, the total number or quantity of Containers or other packages or units indicated in the box entitled "Carrier's Receipt" for carriage from the Port of Loading (or the Place of Receipt, if mentioned above) to the Port of Discharge (or the Place of Delivery, if mentioned above), such carriage being always subject to the terms, rights, defences, provisions, conditions, exceptions, limitations, and liberties hereof (INCLUDING ALL THOSE TERMS AND CONDITIONS ON THE REVERSE HEREOF NUMBERED 1-25 AND THOSE TERMS AND CONDITIONS CONTAINED IN THE CARRIER'S APPLICABLE TARIFF) and the Merchant's attention is drawn in particular to the Carrier's liberties in respect of on deck stowage (see clause 18) and the carrying vessel (see clause 19). Where the bill of lading is non-negotiable the Carrier may give delivery of the Goods to the named consignee upon reasonable proof of identity and without requiring surrender of an original bill of lading. Where the bill of lading is negotiable, the Merchant is obliged to surrender one original, duly endorsed, in exchange for the Goods. The Carrier accepts a duty of reasonable care to check that any such document which the Merchant surrenders as a bill of lading is genuine and original. If the Carrier complies with this duty, it will be entitled to deliver the Goods against what it reasonably believes to be a genuine and original bill of lading, such delivery discharging the Carrier's delivery obligations. In accepting this bill of lading, any local customs or privileges to the contrary notwithstanding, the Merchant agrees to be bound by all Terms and Conditions stated herein whether written, printed, stamped or incorporated on the face or reverse side hereof, as fully as if they were all signed by the Merchant. IN WITNESS WHEREOF the number of original Bills of Lading stated on this side have been signed and wherever one original Bill of Lading has been surrendered any others shall be void.	
Number & Sequence of Original B(s)/L THREE/3		Date of Issue of B/L 2014-11-25		Declared Value (see clause 7.3) Shipped on Board Date (Local Time) 2014-11-25	
Forwarder TIANJIN ZHENHUA GROUP JINGMEN RD 300000 Tianjin 12					
Signed for the Carrier A.P. Moller - Maersk A/S trading as Maersk Line Maersk Agency U.S.A., Inc - Miami CRC As Agent(s) for the Carrier					

This transport document has one or more numbered pages

Freight & Charges	Rate	Unit	Currency	Prepaid	Collect
Total USD			USD		17300.00